Telefónica, S.A.
Attn.: General Counsel

Data Holdings Future, S.L.U.
Attn.: Emilio Díaz Expósito and Eduardo Gómez Leal

Digital Holdings Chile SpA
Attn.: Emilio Díaz Expósito and Eduardo Gómez Leal

DPC Paine (Calle Presidente Prieto 226, Paine, Región Metropolitana, Chile)
DPC San Martín (Calle San Martín 42 (formerly 42-44) and 48 (formerly 48-50) and Calle Tucapel Jiménez 43 (formerly 43-49) and 65 (formerly 61-63), Región Metropolitana, Chile)
DPC Apoquindo (Av. Apoquindo 7079 (formerly 7071 and 7074), Las Condes, Región Metropolitana, Chile)

On 24 May 2022

Re.: Amendment to the confirmation letter signed on 24 July 2019 in relation to the framework agreement for the provision of housing services

We refer to the confirmation letter signed by Telefónica Empresas Chile S.A.; Digital Holdings Chile SpA; Telefónica, S.A.; and Data Holdings Future, S.L.U. on 24 July 2019 in relation to the framework agreement for the provision of housing services (the "**Confirmation Letter**"). Defined terms used but not defined in this letter have the meaning ascribed to them in the Confirmation Letter.

The purpose of this letter is to amend the Confirmation Letter in order to:

(a) add the following data centres (the "**New Data Centres**") to the Local Service Agreement:

  (i) DPC San Martín, located at Calle San Martín 42 (formerly 42-44) and 48 (formerly 48-50) and Calle Tucapel Jiménez 43 (formerly 43-49) and 65 (formerly 61-63), Región Metropolitana, Chile; and

  (ii) DPC Apoquindo, located at Av. Apoquindo 7079 (formerly 7071 and 7074), Las Condes, Región Metropolitana, Chile; and

(b) include specific provisions in, or amend specific provisions of, the Annex-Country in relation to the New Data Centres, including special rules and exceptions to the provisions of the Framework Agreement and Annexes 0 to 3 to the Framework Agreement.

A. Confirmation Letter Effective Date

The Confirmation Letter Effective Date for the New Data Centres will be the date of the effective transfer of the New Data Centres to Digital Holdings Chile SpA.

The New Data Centres will be considered DPCs (specifically Basket 2 DPCs) for all purposes under the Local Service Agreement.

B. Amendments to the Annex-Country

As from the date of this letter, the content of the Annex-Country enclosed with the Confirmation Letter shall be replaced with the content of **Schedule 1** to this letter.

Telefónica S.A. and Data Holdings Future, S.L.U., by signing this letter, accept to add the New Data Centres to the Local Service Agreement, and they acknowledge and agree that they will be deemed DPCs (specifically Basket 2 DPCs) for all purposes and that the provisions of the Framework Agreement and of its Annexes 0 to 3, where applicable, will also apply to the New Data Centres pursuant to Clause 2.10 of the Framework Agreement.

Any provision of the Local Service Agreement not amended or supplemented by virtue of this letter will remain in full force and effect in accordance with the terms and conditions of the Local Service Agreement as set out in the Confirmation Letter.

Please return a signed copy of this letter as proof of acknowledgment and acceptance.

Yours sincerely,

Telefónica Empresas Chile S.A.

By:

Rodrigo Sajuria Garcés

Received and accepted

Telefónica, S.A.

By:

Miguel Garrido de las Heras

Received and accepted

Data Holdings Future, S.L.U.

By:

Fernando Iván Paja Burgoa

Emilio Díaz Expósito

Received and accepted

Digital Holdings Chile SpA

By:

Fernando Noriega Potocnjak

Schedule 1

ANNEX 4C

ANNEX - COUNTRY CHILE

PROVISION OF SERVICES

This Annex consists of the following documents:

Appendix A TECHNICAL DESCRIPTION OF THE DATA PROCESSING CENTERS

Appendix B DESCRIPTION OF THE SERVICES

Appendix C SLAs AND CERTIFICATION

Appendix D INVOICING MODEL, PRICES AND COMMITMENTS

Appendix E USE AND SAFETY RULES IN THE DATA PROCESSING CENTERS

Appendix F GOVERNANCE MODEL

Appendix G PROCEDURES

1. DEFINITIONS

In addition to the terms defined elsewhere in this Annex, the following initially capitalised terms will have the following meaning attributed thereto:

APA	means the asset purchase agreement entered into between Telefónica Chile S.A., as seller, and Digital Holdings Chile SpA, as buyer, on 7 May 2021 by which the seller agreed to sell and transfer, and the buyer agreed to purchase and acquire, the Data Centre Assets (as defined therein) pertaining to DPC San Martín and DPC Apoquindo
Apoquindo Non-Redundant Components	means the components specified as Singular Points of Failure in Section 04 Apoquindo, Puntos Singulares de Fallo of the document titled: '2020 06 04_Project Denver_Capex Memorandum_vShared.pdf' (ID VDR: 3.1.1), pursuant to Clause 5.2 of Annex 3 of the Framework Agreement
BMS	means the Building Management System
Breakdown	has the meaning attributed thereto in section 1 B) of Appendix C
CFD	means simulations that use computational fluid dynamics
Client	means Telefónica Empresas Chile S.A.
Committee	has the meaning attributed thereto in Appendix F
Common Area	means the areas designated as 'Common Area' in Appendix B
Critical Breakdown	means any Breakdown involving a Critical Incident
Critical Incident	has the meaning attributed thereto in section 1 B) of Appendix C
CRP (Change Request Preauthorised)	means pre-authorised measures, i.e. those pre-authorised by the Client due to their impact and risk for the IT service

Incident	has the meaning attributed thereto in section 1 B) of Appendix C
IT	means Information Technologies
Lease Agreement	means the lease agreement entered into between the Provider, as lessor, and the Client, as lessee, on 24 May 2022 for the use of certain non-housing spaces in DPC San Martín
Management Committee	has the meaning attributed thereto in Appendix F
Monitoring Committee	has the meaning given to that term in Clause 8 of the Framework Agreement
Non-Urgent Breakdown	means any Breakdown involving a Non-Urgent Incident
Non-Urgent Incident	has the meaning attributed thereto in section 1 B) of Appendix C
Office Area	means the areas designated as 'Office Area' in Appendix B
Operative Monitoring Committee	has the meaning attributed thereto in Appendix F
Parties	means the parties to the Local Service Agreement, i.e. Telefónica Empresas Chile S.A. and Digital Holdings Chile SpA
Provider	means Digital Holdings Chile SpA
Reference PUE	with respect to each DPC, means the PUE level that the Provider undertakes to maintain, in annual average terms, according to the tables contained in section 3 of Appendix B
Requirements	means all of the technical specifications, quality and capacity requirements and certifications listed in this Annex-Country, including those listed in Appendix A, Appendix B and Appendix C, each one being a "**Requirement**".
Resolution Time	means the time between acknowledgment of the Incident by the Provider to: • Service restoration and recovery (for Critical Incidents); and • Service restoration and recovery or implementation of measures to address the relevant Service risk (for Urgent and Non-Urgent Incidents)
Response Time	means the time between detection (at Client's request or by BMS monitoring system) and Provider's acknowledgement with respect to the relevant Incident

RFC (Request For Change)	means steps that require approval, due to their potential impact on the IT service, and activation of the change-management procedure in order for the Client to approve their execution, scheduling a date and time
RPP	means Remote Power Panel
San Martín Non-Redundant Components	means the components specified as Singular Points of Failure in Section 03 San Martín, Puntos Singulares de Fallo of the document titled: '2020 06 04_Project Denver_Capex Memorandum_vShared.pdf' (ID VDR: 3.1.1), pursuant to Clause 5.2 of Annex 3 of the Framework Agreement
Service	has the meaning attributed thereto in Appendix B
Service Command Panel	means the report including key performance indicators, service levels, and other relevant information that is necessary to ensure the proper analysis, control and follow-up of the Service, as indicated in Appendix F
Service Commencement Date	has the meaning attributed thereto in section 3.4 of this Annex-Country
Service Order Form	means a descriptive document explaining the Services contracted by the Client over a specific period of time, as well as any additional information that is necessary in order for the Provider to supply and deliver the Services to the Client
Significant Transaction	has the meaning attributed hereto in section 7
SLA	means the service level agreements
STS	means Static Switch Transfers
Telefónica Chile	means Telefónica Chile S.A.
Telefónica Soluciones	means Telefónica Soluciones de Informática y Comunicaciones de España, S.A.U.
TIER	means a TIER certification of the Uptime Institute
Treasury Cycles	has the meaning attributed thereto in section 4.3.a) of this Annex
Upgrade Cap Amount	has the meaning attributed thereto in section 3 B. of Appendix C
Upgrades	has the meaning attributed thereto in section 3 B. of Appendix C

Uptime Institute	means a global standard used in the IT industry for data processing centers design, construction and operation, that may change from time to time
Urgent Breakdown	means any Breakdown involving an Urgent Incident
Urgent Incident	has the meaning attributed thereto in section 1 B) of Appendix C
Validate	means notification by Provider of Service recovery (for Critical Incidents) and justifying the resolution to the Service risk (for Urgent and Non-Urgent Incidents)
VDR	means • with respect to DPC Paine, the virtual data room maintained by Intralinks under project name "Project Daytona" referred to in the SPA; and • with respect to DPC San Martín and DPC Apoquindo, the virtual data room maintained by Intralinks under project name "Proyecto Denver" referred to in the APA

The Parties agree and acknowledge that in the event of any disagreement as to the scope or the meaning of those terms, concepts or circumstances (including the technical descriptions of the DPCs) which are defined or delimited throughout this Annex-Country by reference to documents uploaded to the VDR, such disagreement shall be resolved by reading the relevant VDR document in conjunction with any other related VDR documents (including Q&A) as well as with any other written communications exchanged by the Parties within the context of the negotiation and signing of the relevant Confirmation Letter and its Schedules.

Furthermore, all definitions set out in Annex 0 to the Framework Agreement will be deemed as included by reference, as specified, as applicable, in accordance with this Annex-Country.

2. SERVICES

2.1 Provision of the Service. The Service shall be provided by the Provider to the Client in accordance with the technical specifications indicated in Appendix B of this Annex; with the quality and capacity Requirements indicated in Appendix C of this Annex, subject to the economic terms set forth in Appendix D of this Annex and under the governance model set out in Appendix F of this Annex.

2.2 Service Access. The Service shall be provided by the Provider to the Client at the following DPCs, subject to the conditions, rights and obligations set forth in the Framework Agreement, its general Annexes and this Annex, to the extent applicable to the DPCs, in general, and to each of them in particular:

- **DPC Paine**, located in Calle Presidente Prieto 226, Paine, Región Metropolitana, Chile.
- **DPC San Martín**, located in Calle San Martín 42 (formerly 42-44) and 48 (formerly 48-50) and Calle Tucapel Jiménez 43 (formerly 43-49) and 65 (formerly 61-63), Región Metropolitana, Chile.

- **DPC Apoquindo**, located in Av. Apoquindo 7079 (formerly 7071 and 7074), Las Condes, Región Metropolitana, Chile.

Each of the DPC's technical descriptions and capacities are set forth in Appendix A of this Annex; the use and safety rules that the Client undertakes to comply with are set out in Appendix E of this Annex.

3. ORDERS, INSTALLATION AND USE

3.1 Orders. The Client shall order the Services from the Provider pursuant to the administrative-order procedure (with full information and order and technical details to be provided by the Client) established in the document titled "*Gestión Peticiones Infraestructura Técnica Cliente*" included in Appendix G. Parties shall discuss in good faith how to implement the Service requested in accordance with the service conditions described in this Local Service Agreement. Further to such discussions, if any, Provider shall respond to the request as soon as practicable and, in any case, no later than 15 days from the date of Client's request. The Service Order Form will be prepared by the Provider in accordance with the example included in the document titled "*Gestión Peticiones Infraestructura Técnica Cliente*" of Appendix G. The Service Order Form, prepared by the Provider, completed by the Client and accepted by the Provider in accordance with the above, shall describe the specific Services requested by the Client as well as the Client's needs. All Service Order Forms must refer to this Annex and be accepted by the Provider, who may not object if the Services and needs requested by the Client are subject to the terms of the Local Service Agreement to the extent that these Services refer to currently contracted capacity. The Service Order Form accepted by both Parties shall become an integral part of this Local Service Agreement.

3.2 Delivery date. The Service shall be provided on the delivery date reflected in each Service Order Form.

3.3 Preparatory work. In order to facilitate the installation and maintenance of the Service, the Provider shall prepare its facilities, as necessary pursuant to the terms of this Local Service Agreement, and shall install any infrastructure and wiring that is necessary pursuant to the terms of this Local Service Agreement in order to provide the Client with the Service requested.

3.4 Acceptance. The Provider shall notify the Client of the date when the Service will be running and ready for use (the "**Service Commencement Date**"). Unless the Client informs the Provider in writing not less than 2 Business Days prior to the Service Commencement Date that the Service is not operative and ready for Client's use according to the Service Order Form, the Service shall be considered accepted by the Client as of the Service Commencement Date and the Client must pay the price for such Service as from that date. If the Client informs the Provider within the indicated time frame above that the Service is not operative and ready for use according to the Service Order Form, the Parties shall discuss in good faith and shall agree the measures reasonably required to be taken by the Provider – and the Provider shall take such measures - to ensure that the Service is operative and ready for use as soon as possible. In the event that there is no agreement, the matter shall be escalated to the Operative Monitoring Committee in accordance with Appendix F.

4. PRICE AND TERMS OF PAYMENT

4.1 Prices. The Client shall pay to the Provider the amounts reflected in Appendix D for the Services accepted by the Client, pursuant to section 3.4 above.

4.2 Payment. All amounts due by the Client by virtue of this Local Service Agreement shall be paid by the Client to the Provider in accordance with the terms set forth in this Local Service Agreement.

4.3 Payment Terms. Payments shall be made in accordance with the following terms:

a. "Treasury Cycles" refer to dates that are predefined by the Client as the relevant dates to effect payments each month. Currently, the payment dates scheduled by the Client are the following:

MONTH	PAYMENT DAYS		
January	4	11	25
February	7	14	22
March	7	14	22
April	5	12	23
May	7	14	23
June	7	14	21
July	5	12	24
August	7	14	23
September	6	13	25
October	4	11	22
November	7	14	22
December	5	12	24

b. The Client shall inform the Provider, at least thirty (30) days in advance, of each change to the Treasury Cycles.

c. If payment is scheduled for a date other than the Treasury Cycles, it shall be made in the immediately following Treasury Cycle after the scheduled date, without such event constituting any delay by, or implying any penalty against, the Client.

d. If any of the Treasury Cycles falls on a non-Business Day, it shall become due on the first Business Day immediately thereafter.

e. If the Provider is not able to issue the invoice relating to a Service provided on a timely basis for reasons attributable to the Client and, for the avoidance of doubt, not related with an invoice dispute, the Client shall make reasonable efforts, within Client's

internal policies, to speed up the Client's internal processes in order to minimise the period to submit the corresponding Service Order Form (*Hoja de Entrada de Material*) which allows Provider to issue the invoice with the tentative objective to meet, on average, a total payment period, including the submission of Service Order Form, the payment term and Treasure Cycles, of seventy-five (75) calendar days following the end of the month of the Service provided.

5. NOTICES AND NOTIFICATIONS

The Parties hereby provide the following addresses in order to receive all types of notifications and documents in connection with this Annex.

For the CLIENT

Attn.: Claudio Francisco Caroca Díaz

claudio.caroca@telefonica.com

Attn.: Jose Alejandro Poblete Barrios

jose.poblete@telefonica.com

For the PROVIDER

Attn.: Eduardo Gómez-Leal

egomezleal@nabiax.com

With a copy to:

Emilio Díaz

ediaz@nabiax.com

6. ENERGY EFFICIENCY

The Provider recognises it is important to contribute to the global efforts made by corporations around the world aimed at mitigating climate change. The Client is committed to ambitious energy efficiency and renewable energy targets both in its own operations as in its entire value chain. The Provider therefore commits to the improvement of the energy efficiency standards and KPI's in the installations/premises that are the object of this Local Service Agreement as well as to gradually source its energy from non-conventional renewable energy sources, with a view to consuming 100% renewable electricity by 2025 at the latest.

The Provider also undertakes to inform the Client on a quarterly basis of the percentage of renewable energy used in relation to the Provider's use of the installations/premises object of this Local Service Agreement.

Compliance with the foregoing commitment is subject to:

(i) The Provider does not need to carry out specific investments to reach that commitment.

(ii) The local energy market has capability to contract electricity that is 100% renewable and that contracting can be carried out under equal or more favorable conditions than other types of contracting.

7. OTHERS

A. Significant Transaction. For the purposes of Clause 8.3 of Annex 3 to the Framework Agreement, Significant Transaction means a new transaction, or a series of transactions within 12 consecutive months, with a volume in aggregate in excess of 200 kW over and above the currently contracted capacity at the relevant time.

B. Specific NPAs. For the purposes of the Chile Local Service Agreement only, each of the following is a Specific NPA (together the "**Specific NPAs**"):

IBM

Sonda

Tivit

Adexus

Google

Microsoft

C. Special rules and exceptions to the provisions of the Framework Agreement and Annexes 0 to 3 to the Framework Agreement

The Parties agree to amend the general terms contained in the Framework Agreement and Annexes 0 to 3 to the Framework Agreement, as applicable to, and only for purposes of, the Local Service Agreement entered into between Telefónica Empresas Chile S.A. and Digital Holdings Chile SpA, as follows:

1. For clarification purposes, commitments of the Parties in relation to the compliance with all applicable Laws and legislation, set out in Clause 20 of the Framework Agreement and Clause 17 of Annex 3 to the Framework Agreement, shall be read as including the compliance with any Chilean rules or regulations governing the historical conservation property category (*Inmueble de Conservación Histórica*) and any technical requirements imposed by urban planning and other sectorial regulations. For the avoidance of doubt, if the provision of any of the Services under this Local Service Agreement cannot be provided in the manner and/or within the timeframes set forth herein on account of the historical conservation property category (*Inmueble de Conservación Histórica*) of the property located at San Martín No 48 (formerly No 48-50) (*rol de avalúo* 46-36 of the borough of Santiago, Metropolitan Region) that comprises the DPC San Martín, the Parties shall discuss in good faith potential alternatives.

2. Clause 14.1 of the Framework Agreement shall be deemed to read as follows:

   "*In compliance with data protection Law, the personal data of the individuals who sign, manage and execute this Framework Agreement or Local Service Agreement in the name or on behalf, or on account, of each of the Parties shall be processed by the recipient Party as a data controller in order to execute, carry out, perform, manage and monitor the contractual relationship stemming from the Framework Agreement or Local Service Agreement and comply with their statutory duties. The processing of these data is necessary for the aforementioned purposes and the basis for doing so in relation to the data subject are, according to Chilean data protection Law, the law or the data subject's consent, as the case may be*."

3. The following definitions shall be deemed added to Part B of Annex 0:

"**APA**" means the asset purchase agreement entered into between Telefónica Chile S.A., as seller, and Digital Holdings Chile SpA, as buyer, on 7 May 2021 by which the seller agreed to sell and transfer, and the buyer agreed to purchase and acquire, the Data Centre Assets (as defined therein) pertaining to DPC San Martín and DPC Apoquindo.

4. The following definitions included in Part B of Annex 0 shall be deemed amended as follows:

"**Basket 2 DPC**" means a DPC which effective transfer in favour of DCCO or the DCCO Affiliate, as applicable, occurred after the Effective Date, as identified in Annex 1, Part B of the Framework Agreement.

"**Basket 2 DPC Local Service Agreement**" means any Local Service Agreement which comprises one or more DPCs including one or more Basket 2 DPCs.

"**Basket 2 DPC Local Service Agreement Initial Term**" means, with respect to any Basket 2 DPC Local Service Agreement:

(i) insofar as it relates to a Basket 2 DPC, other than DPC San Martín and DPC Apoquindo, comprised in such Basket 2 DPC Local Service Agreement, the term of ten (10) years following the date on which the relevant Basket 2 DPC is effectively transferred to DCCO or the relevant DCCO Affiliate, as applicable; and

(ii) insofar as it relates to DPC San Martín and DPC Apoquindo, the term ranging from (a) the date on which DPC San Martín and DPC Apoquindo are effectively transferred to DCCO or the relevant DCCO Affiliate, to (and including) (b) the tenth (10th) anniversary of the date on which DPC Julián Camarillo Module 1 & 2 and DPC Terrassa were effectively transferred to DCCO or the relevant DCCO Affiliate.

Furthermore, the expressions "prior to the expiry of the initial 10-year term" (as set out in Clause 4.3 of Annex 3 to the Framework Agreement), "at the end of the tenth year following the Effective Date" and "before the 10-year term of the Local Service Agreement expires" (both as set out in Clause 9.8 of Annex 3 to the Framework Agreement) and "the last day of the tenth Contract Year" (as set out in Clause 9.9 of Annex 3 to the Framework Agreement) shall, in respect of DPC San Martín and DPC Apoquindo, be read to mean "prior to the expiry of the Basket 2 DPC Local Service Agreement Initial Term", "at the end of the Basket 2 DPC Local Service Agreement Initial Term", "before the Basket 2 DPC Local Service Agreement Initial Term expires" and "the last day of the Basket 2 DPC Local Service Agreement Initial Term", respectively.

"**TSA**" means each transitional services agreement entered into in accordance with the SPA or the APA, as the case may be, between DCCO and/or a relevant DCCO Affiliate, on the one part, and a relevant OB or, if different, the seller of the relevant DPC, on the other part, in respect of one or more DPCs.

5. The list of Basket 2 DPCs included in Part B of Annex 1 shall be deemed amended to include the DPC San Martín and DPC Apoquindo, as follows:

OBs	DCCO	Country	DPC(s)
Telefónica Empresas Chile S.A.	Digital Holdings Chile SpA	Chile	▪ DPC San Martín

OBs	DCCO	Country	DPC(s)
			▪ DPC Apoquindo

Therefore, DPC San Martín and DPC Apoquindo shall be considered Basket 2 DPCs for all purposes and the Local Service Agreement entered into between Telefónica Empresas Chile S.A. and Digital Holdings Chile SpA shall be considered a Basket 2 DPC Local Service Agreement.

6. The list of Providers providing Services to each OB corresponding to Chile included in Part C of Annex 1 shall be deemed amended to include a reference to DPC San Martín and DPC Apoquindo as follows:

OB (Client)	Country (DPC(s))	DCCO / DCCO Affiliate (Provider)
Telefónica Empresas Chile S.A.	Chile (Paine, San Martín and Apoquindo)	Digital Holdings Chile SpA

7. Any reference in the Framework Agreement or Annexes 0 to 3 to the Framework Agreement to a specific clause of the SPA shall be understood to be made with respect to DPC San Martín and DPC Apoquindo to the equivalent clause of the APA. The table below identifies the equivalences between the clauses of the SPA and the clauses of the APA or, where applicable, specifies that a specific clause of the SPA has not an equivalent in the APA.

SPA	APA
Clause 4.4.3 and 4.4.4	Not applicable for DPC San Martín and DPC Apoquindo
Clause 5.3.1 (B)	Not applicable for DPC San Martín and DPC Apoquindo
Clause 5.5	Clause 5.4
Clause 10.3.8	Not applicable for DPC San Martín and DPC Apoquindo

For the avoidance of doubt, any term used in the Framework Agreement or Annexes 0 to 3 to the Framework Agreement that is defined by reference to the definition included in the SPA shall have the meaning ascribed to it in the SPA, even if it is used in respect of DPC San Martín and DPC Apoquindo.

8. Clause 5.2 of Annex 3 shall be deemed to read as follows:

"5.2 Notwithstanding Clause 5.1, if non-redundant critical components exist in a particular DPC in respect of which the Provider has committed to an upgrade, whenever a failure is triggered by such non-redundancy, the applicable availability levels shall not apply during a transitional period of:

(i) 24 months following the applicable Confirmation Letter Effective Date for any San Martín Non-Redundant Components; and

(ii) 24 months following the applicable Confirmation Letter Effective Date for any Apoquindo Non-Redundant Components.

During this transitional period, the corresponding availability level will be that which represents the DPC's actual capacity for the corresponding non-redundant critical component and the Provider shall carry out, at its own cost (except as otherwise agreed by the Parties in the Annex-Country), any improvements necessary to ensure the availability level required under the corresponding Annex-Country. Once the transitional period noted above has ended, the Provider will be bound by the applicable availability levels.

The list of non-redundant critical components triggering this provisional exclusion will be included in the Annex-Country of each Local Service Agreement.

If, with regard to a DPC, a TIER certification or standard that should be in place as of the Confirmation Letter Effective Date is not in place as of such date, the Provider will be exempted (a) during the first two Contract Years in the case of DPC Apoquindo and DPC San Martín, or (b) during the first Contract Year in the case of DPC Paine, from complying with the Service availability levels required for that DPC set out in the corresponding Annex-Country, provided that the components giving rise to such loss are also the direct cause of the unavailability of the Service."

9. Clause 8.2 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

"8.2 On and from the first anniversary of the Confirmation Letter Effective Date of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa, all prices in the Annex-Country shall be updated on each anniversary with the year-on year variation of the annual consumer price index of the country where the Service is provided, except for the portion of the price representing the cost of consumed electricity, which shall not be affected by any variation in annual consumer price index, and shall be passed through on a cost basis to the Client."

10. Clause 9.2 and the first paragraph of Clause 9.3 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

"9.2 With respect to DPC San Martín and DPC Apoquindo, as from the first day of the fourth Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa, and in subsequent successive five-year periods (i.e., the first day of the ninth Contract Year and, if applicable, the first day of the fourteenth Contract Year and so on, in each case as relating to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa), Client may, at its sole discretion, request Provider to commence a review of the general commercial conditions of the B2B Services. The Parties shall, in good faith, negotiate the terms of such review, which shall include a review of the following factors: pricing, contract extension and volume, and any other relevant factors; *provided, however*, that such good faith negotiation shall be without prejudice to the benchmarking provisions set forth in Clauses 9.3 to 9.12."

"9.3 With respect to DPC San Martín and DPC Apoquindo, on the fifth Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa, and every five years thereafter (i.e., on the tenth Contract Year

and, if applicable, the fifteenth Contract Year and so on, in each case as relating to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa) (each, a "**Contract Year under Review**"), Client may request, at its sole discretion, a benchmarking review of the Blended Charges (as defined below) under the relevant Local Service Agreement to assess whether the Blended Charges are competitive (the "**Benchmarking Review**")".

11. The first paragraph of Clause 9.4 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

    "9.4 With respect to DPC San Martín and DPC Apoquindo, each Benchmarking Review shall be completed before the end of the sixth month of the respective Contract Year under Review and any adjustment resulting from such Benchmarking Review shall apply as from the commencement of the immediately succeeding Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa (i.e., it will apply on the first day of the sixth Contract Year for the first Benchmarking Review, on the first day of the eleventh Contract Year for the second Benchmarking Review and so on, in each case as relating to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa), all in accordance with the following terms and conditions:"

12. Paragraph (b)(ii) of Clause 9.5 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

    "(ii) for the second and, if applicable, successive Benchmarking Reviews under the relevant Local Service Agreement, the Relevant Charges will be reduced to the Definitive Benchmarking Result as from the commencement of the Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa immediately succeeding the Contract Year under Review."

13. Paragraph (e) of Clause 9.5 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

    "(e) is greater than the Blended Charges and the Benchmark Percentage is greater than 10%, then:

    (i) for the first Benchmarking Review under the relevant Local Service Agreement, the Relevant Charges will be increased to the Definitive Benchmarking Result as from the commencement of the Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa immediately succeeding the Contract Year under Review up to a maximum increase equal to 20%; and

    (ii) for the second and, if applicable, successive Benchmarking Reviews under the relevant Local Service Agreement, the Relevant Charges will be increased to the Definitive Benchmarking Result as from the commencement of the Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa immediately succeeding the Contract Year under Review."

14. The definition of "**Annual Payment**" in Clause 9.6 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

    ""**Annual Payment**" means revenues for B2B Services at the commencement of the relevant Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa."

15. Paragraph (b) of Clause 9.6 of Annex 3 shall be deemed to read, with respect to DPC San Martín and DPC Apoquindo only, as follows:

    "(b) For the avoidance of doubt, the Capacity Credits calculated in accordance with the above formulae are granted to Client for each remaining Contract Year of the corresponding Local Service Agreement as it relates to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa following the Contract Year under Review (for instance, if the Capacity Credit resulting from the above formula is equal to *x* kW, the Client will have a Capacity Credit of *x* kW on the sixth Contract Year, a Capacity Credit of *x* kW on the seventh Contract Year and so on until and including the tenth Contract Year, in each case as relating to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa) and the Capacity Credit for a particular Contract Year which has not been effectively delivered by Client in each such Contract Year because the Provider has insufficient available capacity will be accumulated for the Client in successive Contract Years (in each case as relating to DPC Julián Camarillo Module 1 & 2 and DPC Terrassa)."

16. Clause 9.13 of Annex 3 shall be deemed to read as follows:

    "9.13 The Client will update the inventory of B2B Services and IT contracted capacity that was provided in the VDD for the Closing Date (for all DPCs except for DPC San Martín and DPC Apoquindo) and in the VDR for the Signing Date (as defined in the APA) for DPC San Martín and DPC Apoquindo; and shall maintain such inventory for future contracted capacity using the same criteria as set out in Appendix 2. Provider may request evidence for capacity classification at any time."

17. Clause 13.1(f)(ii) of Annex 3 shall be deemed to read as follows:

    "(ii) at any time after (a) the first anniversary of the Confirmation Letter Effective Date in the case of DPC Paine, or (b) the second anniversary of the Confirmation Letter Effective Date in the case of DPC San Martín and DPC Apoquindo, as applicable, in the event of loss of, or infringement in relation to, or failure to obtain, technical or TIER or TIER Gold validations which Provider obliged to have from and including said anniversary in order to provide the Services in accordance with the Annex-Country with respect to any DPC;"

18. The following paragraph (iii) shall be deemed to be included in Clause 13.1(f) of Annex 3:

    "(iii) at any time after the first anniversary of the Confirmation Letter Effective Date, in the event of loss of or infringement in relation to any security certifications by the Provider or any DPC;"

19. Clause 15.3 of Annex 3 shall be deemed to read as follows:

    "Neither DCCO nor any of the DCCO Affiliates shall be liable to any OB and/or Telefónica pursuant to the Framework Agreement or any Local Service Agreement to the extent a failure thereunder by DCCO or any of the DCCO Affiliates is directly caused by, or is a direct result of, any breach of the counterparty's obligations under a TSA, including as a result of lack of performance or defective performance as set out in Clause 3.5(A) of the TSA (a "**TSA Failure**"). Telefónica shall waive, and shall procure that all relevant OBs shall waive, any possible claims against DCCO and/or any of the DCCO Affiliates arising out of or in connection with a failure by DCCO and/or any of the DCCO Affiliates to provide services under the Framework Agreement or any Local Service Agreement where such failures are directly caused by a TSA Failure."

20. Appendix 2 to Annex 3 to the Framework Agreement shall be deemed amended to include the information corresponding to DPC San Martín and DPC Apoquindo, as follows:

COUNTRY	TYPE	DC	POWER IT(kW)			
			Total capacity (kW)	Total Used (Kw)	Total Internal Used (Kw)	Total External Used (Kw)
CHILE	DC	PAINE	1,100	613	53	560
	DC	SAN MARTÍN	2,400	2,205	1,068	1,137
	DC	APOQUINDO	1,200	1,039	723	316
CHILE	TOTAL DC	Total DC CHILE	4,700	3,857	1,844	2,013

The Parties agree that the invoicing units for the IT Infrastructure Integrated Management Services shall be calculated according to average densities based on: (a) a total capacity of 2,400 kW for DPC San Martín, or (b) a total capacity of 1,200 kW for DPC Apoquindo.

If, after negotiations in good faith, the Parties agree that a lower capacity is really available in any particular relevant component (as defined in the document titled "2020 06 04_Project Denver_Capex Memorandum_vShared.pdf" (ID VDR: 3.1.1)) compared to the total capacity declared in any of the DPCs and that an increase of such capacity up to the total capacity declared is necessary to meet an increase in the demand of any of the DPCs due to End-Clients' needs, the Client shall bear the cost of the improvement or installation of those components required to reach the full declared capacity.

D. Telefónica Chile' distribution rights

The Parties hereby acknowledge and agree that Telefónica Chile, an End Client of the Client, is entitled to distribute in whole or in part the Services previously contracted by the Client from the Provider and that Telefónica Chile's clients receiving such Services will be considered End Clients of the Client for the purposes of the Local Service Agreement. For the avoidance of doubt, Telefónica Chile does not assume any obligation or liability vis-à-vis the Provider.

E. Use of data cable trays in IT rooms in DPC San Martín and DPC Apoquindo

In relation to DPC San Martín and DPC Apoquindo, when providing the Services (or colocation services to a third party other than the Client or the End Clients), the Provider shall refrain from using the data cable trays owned by the Client, provided as follows:

(A) The Client will grant the Provider a right of use and right of access to any data cable trays in the IT rooms owned by the Client, *provided* that they are not currently used or reserved for use by the Client in the context of an existing project or outstanding proposal, in each case as at the date of the Provider's request. Such right of use by the Provider shall be free of charge, provided that any maintenance and replacement costs associated with the data cable trays so used by the Provider shall be borne by the Provider. Moreover, such right of use shall not prevent the Client from using the unused space of the same data cable trays so used by the Provider in the event and as necessary.

(B) To the extent the Provider justifies that it is not commercially or technically feasible to use data cable trays owned by the Provider or the data cable trays contemplated in paragraph (A) above, the Client will grant the Provider a right of use and right of access to any other data cable trays owned by the Client *provided, however,* that in these cases the following rules shall apply:

(i) such right of use and right of access shall be contingent on the relevant space in the relevant data cable trays not being currently used or reserved for use by the Client in the context of an existing project or outstanding proposal, in each case as at the date of the Provider's request; and

(ii) the cabling installation in the Client's data cable trays, as well as any preparatory work or subsequent maintenance or repair work, must be carried out and managed by the Client. The Client shall charge the Provider for the cost of such services plus a commercial margin of 19%.

For purposes of this paragraph (B), using alternative data cable trays in IT rooms will be deemed not to be:

(a) commercially feasible if the Provider wishes to make an offer to a third party to provide colocation services and the cost of installing and using new data cable trays would increase the Provider's price to such an extent that the third party would likely refuse it or consider it to be materially above market terms; or

(b) technically feasible if installing or using a new data cable tray materially negatively affects the temperature and quality standards of the DPC, leading to a need to make additional investments to avoid such negative effect.

The Client shall not unreasonably reject the Provider's request and, if the Client rejects the request, it must indicate in writing the basis for doing so in its response to the Provider.

APPENDIX A – TECHNICAL DESCRIPTION OF THE DATA PROCESSING CENTERS

1. TECHNICAL DESCRIPTION OF DPC PAINE

A technical description of DPC Paine is provided in the following document of reference:

- "**Technical book – Painé.pdf**" (ID VDR: 3.3.9.1 "Technical book-Painé")

2. TECHNICAL DESCRIPTION OF DPC SAN MARTÍN

A technical description of DPC San Martín is provided in the following documents and folders of reference:

- '**2020 06 04_Project Denver_Capex Memorandum_vShared.pdf**', (ID VDR: 3.1.1) Annex C San Martín

3. TECHNICAL DESCRIPTION OF DPC APOQUINDO

A technical description of DPC Apoquindo is provided in the following documents and folders of reference:

- '**2020 06 04_Project Denver_Capex Memorandum_vShared.pdf**', (ID VDR: 3.1.1) Annex D Apoquindo

APPENDIX B - DESCRIPTION OF THE SERVICES

1. DEFINITION

The purpose of this Annex is to describe the Services and the conditions under which the Services will be provided by the Provider, covered by this Local Service Agreement, through DPC Paine, DPC San Martín and DPC Apoquindo in all matters not regulated by the general terms for provision of the Services set out in Annex 3 to the Framework Agreement.

The Service provides the Client with an integrated management of any physical space, electricity supply, uninterrupted supply systems, cooling, incident support, security and, if necessary, project back-up and stockpiling, for the Client's information technology (IT) infrastructure.

The Service includes the following items:

a) **IT Infrastructure Integrated Management Services:** this includes the minimum Service functionalities described in section 2;

b) **Consumption of Electricity Services:** in accordance with the terms described in section 3;

c) **Connectivity Services:** covering the wiring infrastructure of the Client's IT infrastructure within the DPC, as described in section 4;

d) **Other Optional Services:** this includes the functionalities described in section 5.

2. IT INFRASTRUCTURE INTEGRATED MANAGEMENT SERVICES

The IT Infrastructure Integrated Management Services covers the following functionalities and services:

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
IT housing space in IT rooms	This provides physical space to host different types of IT equipment and infrastructure. Available space will depend on the contracted service units (kW)	YES	YES	YES
High-level management of room occupancy and layout	The necessary advice is provided to ensure that equipment is located adequately and effectively including, if necessary as per Provider's criteria (but provided Provider must justify any refusal), the completion of CFD. The Provider remains in	YES	YES	YES

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
	control of the horizontal space, power and climate in IT rooms			
Integrated management and maintenance of facilities & utilities	This comprehensively covers the supply and management of electricity and climate in the rooms (facilities), as well as any needs pertaining to electricity, water, fuel, etc. (utilities)	YES	YES	YES
General technical management and supervision (BMS)	Internal system to monitor, control and manage operations over facilities' equipment (electricity and climate). The Provider will allow the Client to access the BMS in order to consult any relevant data affecting the Service, under real-time and online conditions.	YES(**)	YES	YES
Physical Security and Surveillance	This comprehensively covers the DPC's physical security (perimeter security, security and access control, surveillance, rounds, etc.). Fire-fighting protection in IT rooms and the precinct	YES	YES	YES
24x7 Facility Operation	This covers the operation and processing of the necessary corrective and preventive maintenance to ensure a proper running of the technical facilities, within the framework of the reliability and availability	YES	YES	YES

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
	standards of the Service. The Provider is also in charge of maintaining any buildings it owns			
Remote power panel (RPPs). Power connections of IT equipment	In the case of alternate-current supplies, Provider must carry power from the room distribution panels to the base of the rack. In the case of direct-current supplies, it will be the Client, or its End Clients, who carries power from the room distribution panels to the rack	YES (*)	YES	YES
Commodities operation and basic on-site IT operation (hands and eyes)	This covers the on-site necessities of the basic operation of the Client's IT components located on the DPC. (Hands and eyes)	NO	NO	NO
Racking (installation of frames and IT equipment)	Assistance in the room. Support and coverage for the physical installation of the IT infrastructures by installer partners (frames, servers, etc.) in the locations of the room defined for their installation and in accordance with the technical specifications established by the Provider	NO	NO	NO
	Office Area	YES	NO	NO

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
Shared use of common space and resources	**Conference Room**	YES	NO	NO
	Parking Spaces	YES	NO	YES
	UPS Room 500A	YES	NO	NO
	Meeting room + Offices P2	NO	NO	YES
General Services	**This includes the general services detailed in point k) below**	YES	YES	YES

(*) Description in the second paragraph only applicable to DPC San Martín and DPC Apoquindo
(**) Requirements under real-time and online conditions are only applicable to BMS systems linked to the Client's network services in DPC San Martín and DPC Apoquindo. Those requirements (i.e. access to the BMS under real-time and online conditions) shall only be applicable to the extent that, as of the relevant Confirmation Letter Effective Date, the BMS system is operated by the Client in a way that allows the Provider to continue delivering these conditions without carrying out further upgrades or developments.

The IT Infrastructure Integrated Management Services will be provided in accordance with the following service conditions:

a) The reference unit to contract integrated management services is Kilowatts (kW) and includes, as applicable in each DPC, all the functionalities described in the table above.

b) As for the occupancy of IT housing space:

1. In connection with the criteria to distribute the Client's equipment:

   i. The Client shall follow the distribution criteria defined by the Provider in each DPC's standards, notified by the Provider to the Client through the Operative Monitoring Committee.

   ii. The Provider shall establish criteria to determine the best location for the IT equipment taking into account the Client's preferences, the PUE maintenance commitments and each DPC's TIER capacities, each DPC's needs and compliance with the committed SLAs.

   iii. Notwithstanding points i and ii above, the Provider shall ensure that the space assigned in the IT rooms based on the kW contracted by the Client is adjoining, subject to the availability of adjoining space (to this effect, availability means the space neither contracted nor reserved to other client on the basis of outstanding proposals).

   iv. The Provider shall periodically verify that these criteria have been validly complied with by the Client in order to guarantee that conditions for the

maintenance of the Reference PUE and efficiency levels of the air conditioning system are met. The Client shall comply with: (1) all technical rules from the relevant Confirmation Letter Effective Date and (2) any reasonably requested items by the Provider after its supervision in order to ensure the ongoing conditions for the maintenance of the Reference PUE and efficiency levels of the air conditioning system are met from the relevant Confirmation Letter Effective Date.

2. If the Provider locates equipment of third-party clients (other than End Clients) adjoining the Client's equipment, the Provider shall guarantee the physical safety of the Client's equipment as well as the quality levels undertaken in this Annex. As a necessary condition to comply with the foregoing Requirement, and at the Client's request, the Provider shall physically separate this third-party equipment (which, for the avoidance of doubt, does not include equipment from End Clients) from the Client's equipment using metal walls (safe cages) in such a way as to share the same air conditioning infrastructure, but with restricted physical access to their equipment. The Provider shall bear all costs payable as a result of such partitioning, subject to Clause 2.6 of Annex 3 of the Framework Agreement.
3. The Client and its own personnel and subcontracted staff duly authorised by the Client shall have an unlimited access right in order to access the assigned space, subject to full compliance with the DPC's rules and instructions of use and safety.

c) Integrated management of facilities & commodities by the Provider shall include:

1. To obtain the design and construction topology TIER III standard for DPC San Martín, to obtain design and construction topology TIER III standard for DPC Apoquindo, and to maintain the TIER III certification granted by Uptime Institute for DPC Paine, in each case when this Local Service Agreement becomes effective. For any future phase construction capacity extension, Provider shall not be obliged to meet the existing TIER standard.

   Without prejudice to the above and at the Client's request, to obtain design and construction topology TIER III certification to Uptime Institute standards for DPC Apoquindo. The cost of any works required to obtain design and construction topology TIER III certification to Uptime Institute standards for DPC Apoquindo (including for the avoidance of doubt the cost of obtaining the certification itself) that exceed what would be required to only obtain the design and construction topology TIER III standard (the "**Apoquindo Certification Excess Costs**") will be borne by the Client.
2. In the event that existing redundancy exceeds that required by Uptime Institute, the Provider shall continue with its existing redundancy.
3. Adequate staff shall be assigned, in terms of numbers and qualifications for operation and maintenance tasks; one shift (level 1) shall work 24x7, 365 days a year.
4. To perform preventive maintenance and renovation due to obsolescence tasks recommended by manufacturers.
5. To renew, if requested by the Client and at the Client's cost, the Gold Certification granted by Uptime Institute for DPC Paine. Irrespective, if it were the case, of the three year formal renewal of the Gold Certification granted by Uptime Institute for

DPC Paine, and as long as the DPC Paine remains certified, the Provider, if requested by the Client and at the Client's cost, shall complete an annual audit to review the compliance with operation and maintenance standards.

6. Before carrying out any preventive maintenance tasks that could endanger operations, the Client must have granted its approval in order to be able to inform third parties and even reschedule the tasks for times at which there will be the most limited impact. To that end, the Provider shall request the Client's approval at least 15 days before the date scheduled for the preventive maintenance tasks.
7. To maintain the Reference PUE in force at all times. Any excess electricity consumed, due under a failure to meet the Reference PUE, shall be borne by the Provider.
8. As an example, and without limitation, in accordance with the Uptime Institute standards:

   I. The following infrastructure components necessary for the Service:

      i. IT housing space
         - Buildings
         - White Rooms
      ii. Electrical system
         - Supply points
         - Substation
         - Transformers
         - UPS/Rectifiers
         - Boards
      iii. Electrogenous units
      iv. Climate systems
         - Hydraulic circuits/pumps
         - Air handlers
         - Chillers
      v. Fire-fighting systems
         - Detection
         - Extinguishing
      vi. Security
         - Building and room access control
         - Intercom
         - Closed Television Circuit ("**CTVC**")
      vii. Utilities
         - Fuel

- Electrical power
- Water

II. Preventive and corrective maintenance of all facilities. Preventive maintenance, including thermographic testing of electrical facilities, testing of vibrations in mechanical components, alignment of pumps, and any other trials and tests through which the equipment's useful life may be extended.

III. Workforce to carry out preventive and corrective maintenance. Corrective maintenance tasks performed outside working hours due to Breakdowns.

IV. Replacement of obsolescent components and machines when they have reached the end of their useful life, pursuant to manufacturer specifications.

V. Minor material required for preventive maintenance, oil, cooling gas, screws and small fungible items. Stock for replacements or supply protocol in order to resolve any Incidents within the established timeline.

VI. Diesel oil for testing and/or maintenance of electrogenous units.

VII. Loading and testing (*retimbrado*) of fire extinguishers.

VIII. All materials and products necessary to treat Legionella.

IX. Daily cleaning service. Furthermore, the raised floor in IT rooms shall be cleaned each year.

X. All pallets and scrap generated by the Client's activity will be the Client's exclusive responsibility. The Provider shall only provide deposit services and subsequent withdrawal of plastic and cardboard waste. Thus, any third-party providers and installers must manage the withdrawal of any waste generated by their activity.

XI. In connection with specific tasks related to facility management:

i. The Provider shall manage all facilities, including the planning of both preventive maintenance tasks and any required as a result of corrective maintenance. The execution dates of such plans shall be notified by the Provider to the Client with sufficient advance notice.

ii. Corrective maintenance tasks for all facilities may be carried out every day of the week, 24 hours a day, 365 days a year, also known as 24x7 (24 hours a day, 7 days a week). The Provider undertakes, if necessary, to carry out preventive maintenance tasks critical for the continuity of the Service so long as it is defined as a Requirement, outside working hours (outside 9 – 5pm, Saturday afternoons after 12pm, Sundays and holidays) if requested by the staff assigned by the Client, and the Provider has approved such request and any terms of such Service. If this request is rejected by the Provider or otherwise, Client will escalate it to the Operative Monitoring Committee under the provisions of the Local Service Agreement.

iii. When planning preventive maintenance, the schedules recommended by equipment manufacturers shall be taken into account. An annual calendar shall be prepared with all preventive maintenance tasks for equipment included in the DPC's infrastructures and will be submitted

in the Operative Monitoring Committee meeting, at the beginning of the year, and to the Management Committee, every six months.

iv. Any modifications and measures that may affect the Client's Services shall be managed through the Provider's change-management procedure in place between the Client and the Provider, which shall report the execution times and the outcome of the modification once it is completed. The referred change-management procedure is included in the document titled "*Gestión de Cambios*" in Appendix G.

v. All planning shall be generated by the management system (BMS), detailing the tasks scheduled to be performed, indicating the length of each task together with its safety margins, and the human and technical means necessary for its execution. The indicated tasks shall be described step-by-step and the risk and impact of each scheduled task on the DPCs shall be studied. A fall-back plan must also be developed and examined, and started up if necessary.

vi. As part of the annual maintenance planning of the facilities, there are two types of measures:

- Pre-authorised measures (CRP — Change Request Preauthorised), referring to those that need to be pre-authorised by the Client due to their impact and risk on the IT service.
- Measures that require approval (RFC — Request for Change), which, given the potential impact on the IT service, shall trigger the change-management procedure in order for the Client to approve their execution and schedule a date and time.

vii. Once the annual planning is prepared and updated with the corresponding RFC and CRP classifications, monthly maintenance planning must be prepared and sent to the Operative Monitoring Committee two weeks before each month begins for analysis and risk-identification purposes.

viii. CRP classification tasks shall have a date and time assigned within the month to be performed. For preventive maintenance classified as RFC, a tentative date shall be scheduled conditional upon approval pursuant to the change-management procedure.

ix. The facility-maintenance plan is a document that shall be updated by the Provider as the service progresses and equipment is gradually replaced or new equipment is added.

x. The Provider shall carry out the tasks indicated in the facility-maintenance plan and verify the adequate operation of the equipment as set forth in the manufacturer's use and maintenance manuals and, if applicable, the Provider's internal technical instructions.

xi. These tests shall be reflected in the corresponding maintenance record and in the equipment file, together with any reviews, updates, controls, adjustments and other work executed, material replaced, Incidents observed and any other circumstances which, in its opinion, may cause future Breakdowns.

xii. Both ongoing maintenance and preventive/corrective all-risk maintenance are included in the Services contracted.

xiii. If the Provider's intervention is necessary, the request/incident shall be processed through the procedure set forth and notified by the Provider.

d) In relation to Remote power panel (RPPs) functionalities:

1. Electricity supply to room panels. Any wiring from the RPP to the rack which needs to be deployed in addition to that already existing (or any change from alternate-current to direct-current), at the Client's request, shall be treated as an extra project and separately estimated, and regulated as defined under optional services (save, for the avoidance of doubt, as provided in paragraph k) of this Appendix B).
2. The direct-current distribution panels used, on an exclusive basis, by the Client shall be models approved by Client and their location will be decided by the Client.

e) In connection with security and prevention, the Provider shall provide coverage for the entire complex, ranging from perimeter security to video surveillance for personal management and safety. The main items to be taken into account are the following:

1. Control of access by persons and goods.
2. Access to IT rooms
3. Intercom
4. Detection of intruders
5. Perimeter monitoring and CTVC
6. Centralised systems
7. Control of explosives
8. RF inhibitors
9. Emergency plans

f) In connection with basic connectivity infrastructure, its coverage and terms are those reflected in section 4 of this Appendix B.

g) In connection with the shared use of space and common means applicable to DPC Paine:

1. The availability of the Office Area on building A shall consist of the right to use work positions proportionally to the Service contracted (m^2 per kW contracted).
2. The availability of the Conference Room on building A shall consist of a right to use it on request and subject to availability.
3. The availability of Parking Spaces shall consist of the right to use predefined physical space, with 8 permanent lots for clients.
4. The availability of UPS Room 500A on building B shall consist of the right to use an internally partitioned space for the client's tape room ($50m^2$).

If the Client requires a use that exceeds the proportions established in each case, that use will be subject to extra cost to be calculated based on market prices.

In all cases in which a use, proportional to the contracted capacity of several rooms or spaces with the same object of use, is defined, Provider shall, if Client requests, provide the right to use the rooms or spaces in full if the sum of individual proportions is equal to or greater than the size of one of the requested rooms or spaces.

h) In connection with the shared use of space and common means applicable to DPC Apoquindo, and in accordance with the spaces identified in the document titled: '20201212-Listado Salas - Planos v1_MSA_Chile' (ID VDR: 3.1.7):

   1. The availability of Meeting room + Offices P2 located in the second floor shall consist of the Client's exclusive right to use this space.
   2. The availability of Parking Spaces shall consist of a right to use eight parking lots.

   If the Client requires a use that exceeds the proportions established above, the Parties will discuss in good faith potential alternatives to allow the Client to use the required additional space, but the Provider shall not be obliged to make them available to the Client if no agreement is reached. In any case, the use of the additional space will be subject to extra cost to be calculated based on market prices.

i) In connection with the general Services, the Client's right to use the following:

   1. Multipurpose printing
   2. Voice communications and Fixed Telephony terminals
   3. Office LAN communications
   4. Wi-Fi communication in the offices and complex
   5. RADIUS, FIREWALL and DHCP office services
   6. Office communications (1GB bandwidth link for the Internet)

   The foregoing right will be subject to the following conditions:

   (i) that, on the relevant Confirmation Letter Effective Date, the Service is available for the Provider; and

   (ii) that, if Client requires any additional IT equipment or connecting infrastructure (for example office LAN communications, Wi-Fi communication in the offices and complex, RADIUS, FIREWALL and DHCP office services or WAN office communications) for Client's exclusive use, Client shall bear any directly associated operating expense previously approved by Client.

j) In connection with waste management, the Client shall send the Provider its waste management reports. The Provider, upon prior written request of no less than 30 Business Days by the Client, shall supply all available information in connection with the management of its own waste with respect to the Services that the Client requires for Client's audits and its own internal processes. The foregoing will be subject to the governance model set out in Appendix F.

k) For the avoidance of doubt, the cost of any works (including the installation of infrastructure and wiring) required to provide the Client with the contracted IT Infrastructure Management Services in accordance with Clause 3.3 of this Annex-Country are deemed included in the scope of the IT Infrastructure Integrated Management Services and, consequently, shall be performed at no extra cost to the Client.

3. CONSUMPTION OF ELECTRICITY

a) Definition and calculation

This refers to the electricity directly or indirectly consumed by the Client for use of the Services contracted. For the avoidance of doubt, energy consumption in areas, including common areas, within the scope of the Lease Agreement is not the subject of this Local Service Agreement and will be allocated on the basis of the energy billing system provided in the Lease Agreement to avoid the double imposition of the corresponding costs.

The electricity consumed and charged by the Provider to the Client shall be measured as follows:

Total electricity consumed = Electricity consumed by the Client's IT equipment + Indirect consumption by the Client's IT equipment + Proportional consumption in Common Areas.

(i) Direct electricity consumption of the Client's IT equipment. Consumption shall be distributed through a direct cost allocation, if that information is available, or by proportionally distributing the consumption among the IT Infrastructure Integrated Management Services contracted by the Client ("**Direct electricity consumption**"). If the Provider places equipment of third-party clients in an area with no meter for the direct and itemised reading of the Client's consumption, the Provider undertakes to install individual meters in order to read the Client's actual consumption.

(ii) Indirect electricity consumption by the Client's IT equipment. Calculated on the basis of the DPC's actual PUE (Power Usage Effectiveness):

[Consumption of electricity of the IT equipment] x (PUE - 1)

("**Indirect electricity consumption**")

PUE is defined as the ratio between the total power consumed in the DPC's facilities by all equipment and infrastructure, and the power consumed by all IT equipment.

1. The maximum PUE applicable to the consumption of electricity by Client's IT equipment may not exceed each DPC's Reference PUE (see Reference PUE below). If the actual PUE exceeds the Reference PUE, any excess power cost shall be borne by the Provider.
2. If the Provider is able to improve the DPC's PUE over the Reference PUE, mechanisms shall be put in place for an annual adjustment in electricity bills in order to share the net outcome of such increase between the Provider and the Client 50/50, proportionally to the IT Infrastructure Integrated Management Services contracted by the Client.
3. The Client may request and the Provider shall provide the DPC's actual PUE, with the necessary back-up from the Provider. The foregoing will be subject to the governance model set out in Appendix F.
4. If Reference PUE is not established before the relevant Confirmation Letter Effective Date in accordance with the SPA or the APA (as applicable), the Parties shall in good faith agree on the Reference PUE as soon as possible after the relevant Confirmation Letter Effective Date, based on the information as discussed between the Parties immediately prior to the relevant Confirmation Letter Effective Date, and until the Parties agree on the Reference PUE or the independent expert designated pursuant to the SPA (with respect to DPC Paine) or the APA (with respect to DPC San Martín and DPC Apoquindo) issues its

binding decision determining the Reference PUE (which shall be issued taking into account the PUE that the DPC may achieve through the current audited facilities and on the basis of the proper performance and management of the facilities), the Client shall be allocated a portion of the total Indirect electricity consumption of the DPC that is proportional to the Direct electricity consumption of the Client's IT equipment in relation to the total Direct electricity consumption of the DPC.

(iii) Proportional consumption of the Common Areas required to provide the IT Infrastructure Integrated Management Services. This corresponds to the actual consumption generated by the DPC that is not included as Direct electricity consumption or Indirect electricity consumption as defined above. Distribution shall be carried out proportionally to the Services contracted (kW).

b) The Client may request temperature conditions from the Provider other than those agreed in the SLAs defined in Appendix C to this Annex. If this change has an impact on the PUE, a new Reference PUE will be negotiated by the Client and the Provider in line with the new conditions, provided that this does not affect any third party equipment which adjoins the Client's equipment and that the Client covers any potential relocation expenses.

c) The Client may request from the Provider that it use equipment layout criteria in such a way as to maximise the power density of the space occupied in the DPC, always following the margins established by the Provider and defined in the DPC standards. If the occupation of space by Client equipment using these maximum-power-density criteria were not possible without exceeding the Reference PUE, the Provider will duly inform the Client of such circumstance. The Client may then choose to request alternative layout criteria from the Provider in order not to exceed the Reference PUE or negotiate a new Reference PUE with the Provider that is adequate for that equipment layout.

d) Reference PUE

i) Reference PUE for DPC Paine

To be determined as set forth in Section 3 of Appendix B.

ii) Reference PUE for DPC San Martín

To be determined as set forth in Section 3 of Appendix B.

iii) Reference PUE for DPC Apoquindo

To be determined as set forth in Section 3 of Appendix B.

4. BASIC CONNECTIVITY INFRASTRUCTURE

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies DPC San Martín	Applies DPC Apoquindo
Connectivity between two DPC positions located in different rooms (IT rooms, communications rooms and transmission rooms)	• Right-of-way and right of access along the space through which the fibre/cable runs	YES	YES	YES
	• Installation of new fibre or Ethernet cables between two different rooms in the DPC	YES[1]	YES[2]	YES[3]
Connectivity between Client equipment in the same room	Installation of new fibre or Ethernet cables inside the same IT room	NO	NO	NO
Space in transmission and/or communications rooms	Proportionally to the Services contracted (m2 x kW contracted)	YES	YES	YES

The Connectivity Services will be provided in accordance with the following service conditions:

a) When installing new cables/fibres, the Provider will use components (cables, panels, etc.) certified by connectivity manufacturers. The installation of those components will always be carried out by installer partners authorised by the manufacturers.

b) The cables/fibres between DPC rooms used by the Client and the panels where such cables/fibres end will be used and exclusively managed by the Client. For the avoidance of doubt, these panels and cables/fibres are owned by the Client.

[1] This will apply only to the extent that Client demands the installation from the Provider. For the avoidance of doubt, the Client will be able to install new fibre or Ethernet cables between two different rooms in the DPCs.
[2] This will apply only to the extent that Client demands the installation from the Provider. For the avoidance of doubt, the Client will be able to install new fibre or Ethernet cables between two different rooms in the DPCs.
[3] This will apply only to the extent that Client demands the installation from the Provider. For the avoidance of doubt, the Client will be able to install new fibre or Ethernet cables between two different rooms in the DPCs.

c) Client will hold a right-of-way and a right of access along the space through which the cable/fibre runs and the panels are located throughout the term of the Local Service Agreement.

For the avoidance of doubt:

(i) This right-of-way and right of access applies to any space existing as of the relevant Confirmation Letter Effective Date (including, but not limited to, ducts, trays, wall bushings, and cable tunnels) necessary for the Client to run the cable/fibre, regardless of its location, both of which are included as part of the IT Infrastructure Integrated Management Services. Any right-of-way or right of access in relation to spaces that do not exist as of the relevant Confirmation Letter Effective Date shall be subject to technical analysis by the Provider and charges to be agreed by the Parties.

(ii) Except for the installation of new fibre or Ethernet cables between two different rooms in the DPC (in the event that the Client requests installation from the Provider), the maintenance and any functionality related to the Client connectivity (either between two DPC positions located in different rooms or in the same room) remains under the Client's ownership and responsibility, and is excluded from the scope of the Services and, therefore, not subject to any additional charge from the Provider (except for any right-of-way and/or right of access related to any spaces not existing as of the relevant Confirmation Letter Effective Date, for which charges will apply).

d) The Provider must deploy certified internal connectivity solutions in the DPC which are manufacturer-compatible. UTP/FTP, multimode fibre (OM4) and optic fibre (OS2).

e) The Provider will grant access authorisations to the Client's staff in order to take actions involving its own equipment located in communication and transmission rooms. Furthermore, in the event of connectivity Critical Incidents, the Provider will allow the Client's staff to access any premises through which wiring is run, and will facilitate that access. The Response Time for this assistance service in Critical Incidents related to connectivity must not exceed 10 minutes following the Client's alert.

f) If the Provider allows third-party operations to be located inside the transmission and/or communication room, the Client may request that the Provider physically separate the Client's equipment –at the Provider's cost subject to Clause 2.6 of Annex 3 of the Framework Agreement– in order that:

- their physical safety is guaranteed, thus ensuring that physical access points to the equipment are independent and restricted, and
- connectivity to the Client's IT equipment may not be accessed by such third-party operations through the transmission and/or communication room.

5. OTHER OPTIONAL SERVICES

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
Work orders that can be invoiced	The Client may request specific tasks entailing the cost of workforce and/or materials not	YES	YES	YES

FUNCTIONALITY	DESCRIPTION	Applies to DPC Paine	Applies to DPC San Martín	Applies to DPC Apoquindo
	contemplated in the base price of the Services			
Construction of aisle enclosures exclusively for the Client	Additional enclosures to those required for air conditioning reasons	YES	YES	YES
Cleaning back-up		YES	YES	YES
Electricity supply. Electrical circuits.	In all new circuits, the Provider will equip a supply-reading system and will allow the Client to access it	YES	YES	YES
Construction of new Traffic Rooms and Warehouse		YES	YES	YES
Installation of an STS	The Client may request the installation of a transfer system (STS) to guarantee a redundant supply to IT equipment	YES	YES	YES

The Other Optional Services will be provided in accordance with the following service conditions:

- Subject to the Provider's offer and the agreements between the Parties in each case.

APPENDIX C – SLAs AND CERTIFICATION

1. SLAs

The following SLAs are used to measure Service quality:

A) Service level on available power and climate

Service	**AVAILABLE ELECTRICITY SUPPLY**
Description	Availability of electricity supply to the Client's IT equipment
Service level DPC Paine	100%
Service level DPC San Martín	100%
Service level DPC Apoquindo	100%
Aggregate measurement	Monthly and annual
Calculation formula	**% Availability of electricity supply = [(Period of time-Time without electricity supply in any of the Client racks or End Clients / Period of time] * 100** Period of time = total minutes of committed availability in a month/year

Service	**CLIMATE AVAILABILITY - TEMPERATURE**
Description	Availability of climate temperature conditions in IT rooms where the Client's IT equipment is located. This SLA shall apply to any point in the room, measured from the front and the top of the rack (direct measure). In the event that a direct measure is not available, the probes existing in the IT Room will be used and the actual term gap between the existing probes and the cold aisle will be defined jointly by the Parties on a case-by-case basis
Service level DPC Paine	Direct measure: 100% in a range of between 19 and 25 degrees Celsius (both included)
Service level DPC San Martín	Direct measure: 100% in a range of between 19 and 25 degrees Celsius (both included)

Service level DPC Apoquindo	Direct measure: 100% in a range of between 19 and 25 degrees Celsius (both included)
Aggregate measurement	Monthly and annual
Calculation formula	**% Availability = [(Period of time-Temperature time out of range) / Period of time] * 100** Period of time = total minutes of committed availability in a month/year

Service	**CLIMATE AVAILABILITY - RELATIVE HUMIDITY**
Description	Availability of climatic relative-humidity conditions in the IT rooms where the Client's IT equipment is located. This SLA shall apply to any location in each room.
Service level DPC Paine	Direct measure: 100% in a range of between 40 and 60% (both included), measured at any location in the IT room.
Service level DPC San Martín	Direct measure: 100% in a range of between 40 and 60% (both included), measured at any location in the IT room.
Service level DPC Apoquindo	Direct measure: 100% in a range of between 40 and 60% (both included), measured at any location in the IT room.
Aggregate measurement	Monthly and annual
Calculation formula	**% Availability IT room = [(Period of time-Relative humidity time out of range) / Period of time] * 100** Period of time = total minutes of committed availability in a month/year

B) Service level over Response Time in an Incident

The Provider shall immediately handle any Incident that may occur during 24 hours a day. For such purposes, the Provider shall have a 24-hour help desk in order to receive, examine and assign reported Incidents. In order to do so, the Provider shall be available to handle requests every day of the week, 24 hours a day, 365 days a year, also known as 24x7 level (7 days a week, 24 hours a day).

Main definitions:

- **Incident:** An incident shall refer to any abnormal functioning of the IT room that actually or potentially degrades or halts the service. An Incident requires intervention for verification or remedy, in the time and manner previously set forth; it is usually detected with an alarm when it reaches a threshold or meets a predefined condition.

- **Breakdown:** A breakdown shall refer to damage preventing regular operation of a piece of equipment or device (please note that, given equipment redundancy, equipment breakdown need not trigger an Incident in Client service).

To handle the Incidents, these are classified by criticality and impact, as set forth in the document titled "*Gestión de Incidencias*" in Appendix G, taking as a reference, amongst others, the service of the Client's IT equipment:

- **Critical Incident:** Incidents causing unavailability in the Client's IT equipment or which, *per se*, may imminently endanger the Service, requiring rapid action from the Provider.
- **Urgent Incident:** Incidents that may affect IT equipment, with a low risk of materialising, given branch redundancy, continuity components in place, etc.
- **Non-Urgent Incident:** Incidents that may affect IT equipment but which have redundant machinery in the same branch.

The following protocol shall be followed to detect Incidents in an operative procedure:

- The Provider will detect an Incident, either from the BMS monitoring system or if reported by the Client, or through preventive maintenance. This Incident will be assigned a type of Breakdown (Critical Breakdown, Urgent Breakdown and Non-Urgent Breakdown) that, depending on its classification, will entail a total repair time. Once the measure is completed, the Provider shall Validate the Incident so that, depending on both Response Times and Resolution Times, its conduct is classified and objectively evaluated.
- Depending on the type of Incident, the Provider undertakes to make available to the facility any human and material resources in order to resolve the Incident in the following periods of time:

(a) For DPC Paine:

Type of Incident	Facility affected	Committed Response Time	Committed Resolution Time
Critical	IT Room	10 minutes	3 hours
	NON-IT Dependence	10 minutes	3 hours
	Lifting Apparatus	10 minutes	3 hours
	Cleanliness	3 hours	8 hours
Urgent	IT Room	10 minutes	6 hours
	NON-IT Dependence	3 hours	8 hours
	Lifting Apparatus	3 hours	12 hours
	Cleanliness	6 hours	24 hours
Non-Urgent	IT Room	8 hours	24 hours
	NON-IT Dependence	8 hours	24 hours

	Lifting Apparatus	8 hours	24 hours
	Cleanliness	8 hours	24 hours

(b) For DPC San Martín

Type of Incident	Facility affected	Committed Response Time	Committed Resolution Time
Critical	IT Room	10 minutes	3 hours
	NON-IT Dependence	10 minutes	3 hours
	Lifting Apparatus	10 minutes	3 hours
	Cleanliness	3 hours	8 hours
Urgent	IT Room	10 minutes	6 hours
	NON-IT Dependence	3 hours	8 hours
	Lifting Apparatus	3 hours	12 hours
	Cleanliness	6 hours	24 hours
Non-Urgent	IT Room	8 hours	24 hours
	NON-IT Dependence	8 hours	24 hours
	Lifting Apparatus	8 hours	24 hours
	Cleanliness	8 hours	24 hours

(c) For DPC Apoquindo

Type of Incident	Facility affected	Committed Response Time	Committed Resolution Time
Critical	IT Room	10 minutes	3 hours
	NON-IT Dependence	10 minutes	3 hours
	Lifting Apparatus	10 minutes	3 hours
	Cleanliness	3 hours	8 hours
Urgent	IT Room	10 minutes	6 hours
	NON-IT Dependence	3 hours	8 hours

	Lifting Apparatus	3 hours	12 hours
	Cleanliness	6 hours	24 hours
Non-Urgent	IT Room	8 hours	24 hours
	NON-IT Dependence	8 hours	24 hours
	Lifting Apparatus	8 hours	24 hours
	Cleanliness	8 hours	24 hours

- The compliance measure shall be aggregated in monthly periods.
- The following formula shall be used to calculate untimeliness in an Incident (the "**Untimeliness Value**"):

  Timeliness in an Incident (*Cumplimiento tiempo de una Incidencia*) [CTI] = [Actual time]/[Committed time]

  - If [CTI] is greater than 1, the Untimeliness Value (*Valor de Incumplimiento de Tiempo*) [VIT] is equal to ONE.
  - If [CTI] is less than or equal to 1, the Untimeliness Value [VIT] is equal to ZERO.

  The monthly Untimeliness Value [VIT(m)] shall be equal to:

  - The sum of Untimeliness Values of all Critical Incidents arising over one month [∑[VITc(m)]
  - The sum of Untimeliness Values in all Urgent Incidents arising over one month [∑[VITu(m)], multiplied by 0.5
  - The sum of Untimeliness Values of all Non-Urgent Incidents arising over one month [∑[VITn(m)], multiplied by 0.2

$$\mathbf{[VIT(m)] = \sum[VITc(m) + [\sum[VITu(m) * 0.5] + [\sum[VITn(m) * 0.2]}$$

Exemption from compliance with service levels

The Provider shall be exempt from service-level commitments if the unavailability of the services is caused by:

- Excessive consumption authorised in favour of the Client at the location of the IT equipment.
- Absence of redundant supply sources or, by default, absence of a transfer system (STS) to guarantee a redundant supply to IT equipment.
- Defects or alterations in Client circuits or equipment.
- Client applications or equipment.
- Acts or omissions on the part of the Client or the Client's authorised staff.
- A breach by the Client or the Client's authorised staff of DPC use and safety rules and instructions.
- Force Majeure Events.

- Apoquindo Non-Redundant Components and San Martín Non-Redundant Components, in each case provided the unavailability occurs in the period specified in Clause 5.2 of Annex 3 of the Framework Agreement.
- For DPC San Martín and DPC Apoquindo, in respect only of the components specified below which have been determined to be obsolete (according to their useful life) as at the applicable Confirmation Letter Effective Date (the "**Obsolete Components**"), during the period set out in paragraph (iv) of Subsection B of Section 3 of Appendix C, in accordance with the terms and conditions set out in said Subsection B:

  (a) For DPC San Martín:

Obsolete Components (15 years *UPS* and *Clima* / 25 years *Trafos* /8 years *Baterías (selladas)* 15 years *Baterias (líquidas)* /20 years *Rectificadores*)					
Area	**Equipment Identification**	**Brand**	**Year of manufacture**	**Floor**	**Room**
Clima	EAA-01	AIR BLUE	2002	SUBTERRANEO 2	SALA ENERGÍA SM50
Clima	EAA-02	AIR BLUE	2002	SUBTERRANEO 2	SALA ENERGÍA SM50
Clima	EAA-01	LIEBERT	1992	SUBTERRANEO 1	SALA PRINCIPAL 9
Clima	EAA-02	LIEBERT	1992	SUBTERRANEO 1	SALA PRINCIPAL 9
Clima	EAA-03	LIEBERT	1989	SUBTERRANEO 1	SALA PRINCIPAL 9
Clima	EAA-04	LIEBERT	1989	SUBTERRANEO 1	SALA PRINCIPAL 9
Clima	EAA-01	GOODMAN	SIN INFO	PISO 1	SALA MDF
Clima	EAA-01	CARRIER	SIN INFO	PISO 2	SALA PORTADORES
Clima	EAA-01	UNIFLAIR	SIN INFO	PISO 2	SALA GSM
Clima	EAA-02	LIEBERT	1998	PISO 2	SALA GSM
Clima	EAA-01	LIEBERT	1998	PISO 2	SALA CROSSCONECT
Clima	EAA-01	CLARK	1996	PISO 3	SALA NOKIA
Clima	EAA-02	CLARK	1996	PISO 3	SALA NOKIA
Clima	EAA-01	AMICO	1998	PISO 2	SALA ALCATEL
Clima	EAA-02	CLARK	2004	PISO 2	SALA ALCATEL
Clima	EAA-04	LIEBERT	1989	PISO 2	SALA ALCATEL
Clima	EAA-05	LIEBERT	1989	PISO 2	SALA ALCATEL
Clima	EAA-01	LIEBERT	2004	PISO 4	SALA MOVIL
Clima	EAA-02	LIEBERT	2004	PISO 4	SALA MOVIL
Clima	EAA-01	LIEBERT	1996	PISO 4	SALA CCI
Clima	EAA-02	LIEBERT	1996	PISO 4	SALA CCI
Clima	EAA-03	Liebert	2004	SUBTERRANEO 1	SALA UPS CPD
Clima	EAA-01	AIR BLUE	2003	PISO 1	SALA TIC 2
Clima	EAA-04	AIR BLUE	2002	PISO 1	SALA TIC 2
Clima	EAA-02	AIR BLUE	2006	PISO 1	SALA TIC 2
Clima	EAA-01	CLARK	SIN INFO	PISO 1	BODEGA HP
Clima	EAA-02	CLARK	SIN INFO	PISO 1	BODEGA HP
Clima	EAA-01	LIEBERT	2004	PISO 4	SALA MUNDO
Clima	EAA-02	LIEBERT	2004	PISO 4	SALA MUNDO
Clima	EAA-02	LIEBERT	2005	PISO 4	SALA MUNDO

Clima	EAA-01	AIRBLUE	2002	PISO 5	SALA NOC 2
Clima	EAA-01	AIRDATA	1985	PISO 1	SALA BANDA ANCHA
Clima	EAA-02	LIEBERT	1993	PISO 3	SALA MAQUETAS
UPS	UPS 2 CPD	CHLORIDE	2002	SUBTERRANEO 1	salas CPD
UPS	UPS 4 TIC 5	ONDYNE	2001	SUBTERRANEO 1	SALA ENERGÍA SM48
UPS	TRAFO-1 - E1	RHONA	1988	SUBTERRANEO 1	SALA ENERGÍA SM50
UPS	TRAFO-2 - E1	RHONA	1988	SUBTERRANEO 1	SALA ENERGÍA SM51
UPS	UPS B SM48 (Resp)	RIELLO	2007	SUBTERRANEO 1	Salas RED (Principal 9, SDH, PSSBA, Prepago, Movil, Crossconect, Telxius)
UPS	UPS 1 TIC 4	RIELLO	2007	SUBTERRANEO 1	TIC 4
UPS	UPS 2 TIC 4	RIELLO	2007	SUBTERRANEO 1	TIC 4
UPS	UPS 3 TIC 4	RIELLO	2007	SUBTERRANEO 1	TIC 4
UPS	UPS 4 TIC 4	RIELLO	2007	SUBTERRANEO 1	TIC 4
Baterias	RECTIFICADOR N°1	FULMEN	2007	SUBTERRANEO 2	SALA ENERGÍA SM48
Baterias	RECTIFICADOR N°1	FULMEN	2007	SUBTERRANEO 2	SALA ENERGÍA SM48
Baterias	RECTIFICADOR N°2	FULMEN	2004	SUBTERRANEO 2	SALA ENERGÍA SM48
Baterias	RECTIFICADOR ELTEK	CLASSIC	2004	SUBTERRANEO 1	SALA ENERGÍA SM50
Baterias	RECTIFICADOR ELTEK	CLASSIC	2004	SUBTERRANEO 1	SALA ENERGÍA SM50
Trafo	TRAFO-1 - E1	RHONA	1988	SUBTERRANEO 1	SALA ENERGIA TUCAPEL
Trafo	TRAFO-2 - E1	RHONA	1988	SUBTERRANEO 1	SALA ENERGIA TUCAPEL

(b) For DPC Apoquindo:

Obsolete Components (15 years *UPS* and *Clima* / 25 years *Trafos* /8 years *Baterías (selladas)* 15 years *Baterias (líquidas)* /20 years *Rectificadores*)					
Area	**Equipment Identification**	**Brand**	**Year of manufacture**	**Floor**	**Room**
Clima	EAA-01-I/E	Uniflair	1998	Subterraneo	SDH
Clima	EAA-01-I/E	Stulz	2004	Subterraneo	M8
Clima	EAA-02-I/E	Airblue	2007	Subterraneo	M8
Clima	EAA-01-I/E	Carrier	2005	Piso 1	Robot
Clima	EAA-02-I/E	Liebert	1998	Piso 1	Mainframe
Clima	EAA-03-I/E	Liebert	1998	Piso 1	Mainframe
Clima	EAA-04-I/E	Liebert	1998	Piso 1	Mainframe
Clima	EAA-01-I/E	Liebert	2007	Piso 2	PCM
Clima	EAA-01-I/E	Airflow	2001	Piso 2	Conmutación
Clima	EAA-02-I/E	Airflow	2001	Piso 2	Conmutación
Clima	EAA-03-I/E	Liebert	1995	Piso 2	Conmutación

Clima	EAA-04-I/E	Airblue	2007	Piso 2	Conmutación
UPS	UPS #0 90-Net A.A. CPD1	Chloride	2006	Piso -1	CPD 1
UPS	UPS #1 90-Net Chloride CPD1	Chloride	2006	Piso -1	CPD 1
UPS	UPS #2 90-Net Chloride CPD1	Chloride	2006	Piso -1	CPD 1
Trafo	TRAFO-1	Trasfor	1999	Piso -2	Energia
Trafo	TRAFO-2	Trasfor	1999	Piso -3	Energia

- , *provided that* the above list of Obsolete Components shall be updated, at Provider's request to be made within 12 months of the applicable Confirmation Letter Effective Date, to include any additional components that were already obsolete as at the Confirmation Letter Effective Date. The Parties shall negotiate in good faith with a view to agreeing on the final list of Obsolete Components. In case the Parties do not come to an agreement within one month, the final list of Obsolete Components shall be determined by the Independent Expert (as defined in the APA), for which purpose the second and third paragraphs of clause 5.4(C)(iii) of the APA shall apply *mutatis mutandis*.

2. PENALTIES

Terms of imposition of penalties include:

- The following SLAs shall be deemed breached and a penalty may be imposed:
    - Power availability. An availability percentage less than 100% per month and/ or 99.982% per year during the measurement period.
    - Climate availability. An availability percentage less than 99.982% per month and/ or year over the measurement period.
    - For any other service levels, a penalty shall apply upon the occurrence of less than 100% compliance.
- For climate-availability service levels, when determining "*Temperature time out of range*" and "*Relative humidity time out of range*", a breach shall only occur if the parameter (temperature or relative humidity) remains out of the range for more than 15 minutes as from the moment that it fell outside the range. If these 15 minutes are exceeded, the total time out of the range will constitute unavailability. For clarification purposes:
    - Example 1: An event occurs whereby the parameter remains out of the range during 14 minutes. This will not constitute unavailability and will not be taken into account as time out of the range.
    - Example 2: An event occurs whereby the parameter remains out of the range for 16 minutes. This will constitute unavailability, with 16 minutes being taken into account as the time out of the range.
- Each month and year, as applicable, subject to the Operative Monitoring Committee or Monitoring Committee, as applicable, the Provider shall fully report to the Client on the Provider's compliance indicators of service levels for the period.
- If the service levels are not complied with, the Provider shall pay the Client, in the next invoicing period, the total amount of such penalties.

Economic valuation of penalties:

- The economic valuation of the penalties will amount to 10% for each SLA not met, over the amount invoiced during the measurement period (monthly or annually), for the **IT Infrastructure Integrated Management Services**, following the calculation formulas applicable in each case:

  % MONTHLY PENALTY = (([No. of SLAs breached in the month of power and climate availability] + [VIT(m)]) * 0.1) * 100 (the "**Monthly Penalty**")

  % ANNUAL PENALTY = ([No. of SLAs breached in the year of power and climate availability] * 0.1) * 100

  MONTHLY PENALTY AMOUNT = [% MONTHLY PENALTY] * [TOTAL MONTHLY AMOUNT OF IT INFRASTRUCTURE INTEGRATED MANAGEMENT SERVICES IN THE INVOICE FOR THE MONTH MEASURED]

  ANNUAL PENALTY AMOUNT = [% ANNUAL PENALTY] * [TOTAL ANNUAL AMOUNT OF IT INFRASTRUCTURE INTEGRATED MANAGEMENT SERVICES IN THE INVOICE FOR THE YEAR MEASURED]

- Notwithstanding the Client's rights and the Provider's obligations established in the Framework Agreement, the maximum Monthly Penalty applicable to a breach of service levels is 100% for each DPC.

3. CAPACITIES AND CERTIFICATIONS

A. The Provider undertakes to have and maintain the following capacities and certifications, as applicable:

a) DPC Paine

- Shall maintain the sustainable operation standards of Uptime Institute.
- Shall maintain TIER III certification granted by Uptime Institute. The Provider shall not be obliged to meet this TIER certification for any future phases or expansion.
- Shall meet the security, quality and environmental standards needed to ensure that, in so far that they relate to Services' requirements, the Client can maintain the following certifications:
  - ISO/IEC 9001
  - ISO/IEC 14001
  - ISO/IEC 27001
  - ISO/IEC 20000
  - ISO 50001
- Shall comply with Telefónica Soluciones' requirements to certify the security of PCI-DSS means of payment in so far that they relate to co-location requirements.

B) DPC San Martín

- Shall obtain design and construction topology TIER III standard pursuant to Uptime Institute standards in accordance with paragraph B. below. For any future phase construction or capacity expansion, Provider shall not be obliged to meet the existing TIER standard.

- Shall meet the security, quality and environmental standards needed to ensure that, in so far that they relate to Services' requirements, the Client can maintain the following certifications:
    - ISO/IEC 9001
    - ISO/IEC 14001
    - ISO/IEC 27001
    - ISO/IEC 20001
    - ISO/IEC 22301
    - ISO 50001
    - AT320
- Shall comply with Telefónica Soluciones' requirements to certify the Security of PCI-DSS means of payment in so far that they relate to co-location requirements.

C) DPC Apoquindo

- Subject to the terms set out in section 2.c).1 of Appendix B above, shall obtain design and construction topology TIER III standard or certification granted to Uptime Institute standards in accordance with paragraph B. below. For any future phase construction or capacity expansion, Provider shall not be obliged to meet this TIER certification.
- Shall meet the security, quality and environmental standards needed to ensure that, in so far that they relate to Services' requirements, the Client can maintain the following certifications:
    - ISO/IEC 9001
    - ISO/IEC 14001
    - ISO/IEC 27001
    - ISO/IEC 20001
    - ISO 50001
    - ISO/IEC 22301
    - AT320
- Shall comply with Telefónica Soluciones' requirements to certify the Security of PCI-DSS means of payment in so far that they relate to co-location requirements.

B. In relation to the (a) improvements of the Apoquindo Non-Redundant Components and San Martín Non-Redundant Components required to obtain or reach the design and construction topology TIER III certification or standard, as the case may be, pursuant to Uptime Institute standards for DPC San Martín and DPC Apoquindo mentioned above; and (b) replacement of the Obsolete Components (both (a) and (b) jointly, the "**Upgrades**"), the Parties agree as follows:

(i) Subject to the remaining paragraphs of this section B, Provider shall (a) prepare the corresponding technical projects; (b) carry out the necessary works; and (c) take all necessary actions to carry out the Upgrades. Client shall cooperate with Provider and provide all reasonable assistance to carry out the Upgrades.

(ii) Provider shall, as soon as reasonably practicable after the applicable Confirmation Letter Effective Date, prepare a technical proposal for the Upgrades, together with an itemised budget for its implementation in full, both of which shall be submitted to the Client.

(iii) Provider shall inform Client of any material developments of which Provider becomes aware in connection with the Upgrades and the performance of each of the steps mentioned in paragraph (i) above.

(iv) The Upgrades shall be performed as soon as practicable and in any event within 24 months following the applicable Confirmation Letter Effective Date. Until such deadline has expired, the Provider shall not be liable to the Client and/or Telefónica, S.A. pursuant to the Local Service Agreement or the Framework Agreement to the extent a failure thereunder by the Provider is directly caused by, or is a direct result of the failure of:

(a) one Obsolete Component pertaining to a relevant 'n+1' redundant functionality, where n=1, during its Committed Resolution Time; or

(b) at least two Obsolete Components pertaining to the same relevant 'n+1' redundant functionality, where n>1, such that the performance of this relevant functionality is insufficient to meet actual demand at the time of the failure.

For the avoidance of doubt, the waiver of liability granted to the Provider in this paragraph (iv) applies, without limitation, to breaches of the availability SLAs set out in this Appendix C, but not to breaches of the Response Time SLAs and the Resolution Time SLAs set out in this Appendix C.

(v) All costs and expenses incurred to implement the Upgrades, with the exception of the Apoquindo Certification Excess Costs (which shall be borne exclusively by the Client), shall be borne exclusively by Provider up to an aggregate maximum of (a) EUR 8.2 million plus (b) any amount committed pursuant to the Spanish Annex-Country to perform the upgrade investments in DPC Julián Camarillo Module 1 & 2 and DPC Terrassa and not necessary for any such DPC to reach the design and construction topology TIER III standard pursuant to Uptime Institute standards ((a) and (b) together being the "**Upgrade Cap Amount**"). All costs and expenses must be reasonably incurred and properly documented. For the avoidance of doubt, the above-mentioned monetary limitations apply to all costs and expenses incurred to implement the Upgrades, such as design and construction engineering, obtention of permits, licenses and authorisations, installation, health and safety, or commissioning (and not only constructions costs or the cost to acquire the new component). It is hereby stated that the certification process will be carried out by the Provider who shall, among other actions, provide the required information to Uptime Institute, coordinate the required site visits and, generally, coordinate any reasonable action required for Uptime Institute to certify the DPC Apoquindo.

For the avoidance of doubt, the costs and expenses of the replacement of any obsolete asset pertaining to the DPC San Martín and DPC Apoquindo not included in the list of Obsolete Components (as finally determined in accordance with the APA) shall be borne exclusively by Provider and shall not be subject to the maximum limit set out in this paragraph.

(vi) Depending on the amounts contained in the relevant budget, as prepared by the Provider in accordance with paragraph (ii) above, and its comparison to the Upgrade Cap Amount, the following rules shall apply:

	Provider's rights	Client's rights
If overall budget does not exceed Upgrade Cap Amount	a. Provider shall be free to approve the technical proposal and the budget, and to implement the technical proposal, subject to considering in good faith Client's proposals.	i. Provider shall carry out all the required actions to reach the Upgrades, according to the corresponding justified (i.e. consistent with the Upgrades and the budget) technical project presented by the Provider. ii. Provide comments and alternative proposals to the technical proposal and budget, to be considered by Provider in good faith.
If overall budget exceeds Upgrade Cap Amount	b. Client to negotiate with Provider in good faith the consequences of exceeding Upgrade Cap Amount, with a view to reaching the least burdensome agreement possible for each of the Parties. c. After holding good-faith discussions for a period of at least fifteen (15) Business Days without an agreement, and if Client's final decision is to not bear (to the extent they exceed the Upgrade Cap Amount) the costs and expenses necessary to achieve the Upgrades in full, then: • Provider shall perform, up to the Upgrade Cap Amount, such portion of the Upgrade determined by the independent expert (the "**Minimum Upgrade**"). • Client shall exempt Provider from the obligation to comply with the SLAs established in this Appendix C whenever a failure is triggered (in the terms set out in paragraph (iv) above) by a San Martín Non-Redundant Component, an Apoquindo Non-Redundant Component or an Obsolete Component which has not been upgraded in accordance with this paragraph (vi). • Provider shall not be obliged to assume any costs or expenses above the Upgrade Cap Amount in relation to such Upgrades. However, Provider may decide to bear, totally or partially, the costs and expenses of the	iii. Provider to negotiate with Client in good faith the consequences of exceeding Upgrade Cap Amount, with a view to reaching the least burdensome agreement possible for each of the Parties. iv. After holding good-faith discussions for a period of at least fifteen (15) Business Days, if the Parties are unable to reach an agreement, then: • Client may decide to bear (to the extent such costs and expenses exceed the Upgrade Cap Amount) the costs and expenses necessary to reach the Upgrades in full. In such case, Provider shall perform all actions required to implement the Upgrades pursuant to Client's technical and economic criteria and it shall prioritise its implementation as the Client deems appropriate, acting reasonably, subject to considering in good faith Provider's proposals. • Client may decide not to bear the costs and expenses of the Upgrades. In such case, the Provider shall implement the Upgrades at least up to the Upgrade Cap Amount and an independent expert shall determine the portion of the Upgrades that must be implemented up to the Upgrade Cap Amount (the "**Minimum Upgrade**") according to the following principles: – The Minimum Upgrade must not unduly prioritise the Services and spaces

	Provider's rights	Client's rights
	Upgrades exceeding the Upgrade Cap Amount. In such case, Provider shall perform the corresponding portion of the Upgrades pursuant to its own technical and economic criteria and it shall be entitled to prioritise its implementation as it deems appropriate.	used by the Client to the detriment of the services and spaces not used by the Client in the relevant DPC; – The scope of the Minimum Upgrade shall be determined by excluding from such scope actions included as part of the Upgrades in the following order: 1. Upgrades only affecting non-critical Client's Service (criticality as defined according to the impact on Services provided internally or to End-Clients, as in input from the Client to the independent expert) 2. Obsolete Components related to non-essential components (those which failure do not affect the service availability e.g.: power transformers) 3. Cooling singular points of failure 4. Power singular points of failure

The provisions of this Subsection B apply specifically to DPC San Martín and DPC Apoquindo and are intended to be an exception to the general regime and therefore cannot be relied on to interpret, or otherwise in connection with, any other provision of this Annex-Country.

C. Furthermore, the Provider will collaborate with the Client in its auditing, review and certification processes, both its own and those of third parties, in relation to the Services, providing evidence of compliance with any regulatory and legal requirements explicitly and specifically associated with the Service covered by this Local Service Agreement, subject to the Requirements indicated above for the DPCs covered by this Local Service Agreement.

Any audit in relation to this Annex shall be made in accordance with Clause 23 of Annex 3 to the Framework Agreement.

APPENDIX D - INVOICING MODEL, PRICES AND COMMITMENTS

1. INVOICING MODEL

The Service is invoiced in accordance with the following items:

a) **IT Infrastructure Integrated Management Services:**

- The service invoicing unit is the Kilowatt (kW) contracted for the IT room.
- The invoicing unit includes all Service functionalities, in the proportion and capacity described in section 2 of Appendix B.
- All units are invoiced on a monthly basis and shall include:
    - the Minimum Service Purchase Commitments, pro-rated for the month, and multiplying the unit prices specified in section 2 of this Appendix D by such commitments; plus
    - Any additional acquisition of capacity in addition to the Minimum Service Purchase Commitments, multiplied by the applicable unit price.

b) **Consumption of Electricity Services:**

- The service invoicing unit is Kilowatt/hour (kWh)
- Effective consumption is measured in accordance with the terms described in section 3 of Appendix B.
- The Provider shall be in charge of extracting consumption data with the electricity suppliers that is available to the Provider under the relevant agreement with the electricity suppliers. Once the information is validated by the Provider, it shall be submitted to the Client.
- The Client is invoiced during the following month upon receipt by the Provider of supply invoices, in accordance with unit consumption prices contracted by the Provider with its suppliers (pass through model), up to a maximum of the existing prices as at the Effective Date. The foregoing shall be subject to the conditions of the relevant supplier agreements as of the Confirmation Letter Effective Date.

  If the Provider decides to change the pass through model set forth above, unless Provider and Client agree to that change, the Client shall only be obliged to pay up to an amount equal to the one resulting from calculating it in accordance with the pass through model.
- The Parties will analyse mechanisms to incentivise energy efficiency and share potential benefits. In connection with these prices:
    - They will be notified by the Provider to the Client and may be accredited by the Client based on contractual and invoicing information exchanged by the Provider and its suppliers.
    - Any possible invoicing errors in connection with the Provider's suppliers (that the Provider is reasonably aware of) shall not be charged to the Client.
    - If Provider cannot guarantee a price equal to or lower than the existing prices as at the Effective Date, the Parties agree to jointly collaborate on

negotiations with the suppliers with the aim of obtaining more favourable prices.

c) **Connectivity Services:**

- For connectivity between two DPC sites located in different IT rooms, the Provider shall invoice a non-recurring unit price for each new fibre installed.

d) **Other Optional Services:**

- To be defined depending on the Provider's offer and the service required by the Client.

2. PRICES

The prices invoiced by the Provider to the Client whilst this Local Service Agreement remains in force, are the following:

ID	Item	Unit that can be invoiced	Unit Price DPC Paine
CH01	**IT Infrastructure Integrated Management Services**	kW/MONTH	229,865.71 CLP

ID	Item	Unit that can be invoiced	Unit Price DPC San Martín	Unit Price DPC Apoquindo
CH03	**IT Infrastructure Integrated Management Services - general**	kW/MONTH	185,254.93 CLP	218,351.88 CLP

ID	Item	Unit that can be invoiced	Unit Price DPC Paine	Unit Price DPC San Martín	Unit Price DPC Apoquindo
CH02	**Consumption of Electricity Services**	kWh/MONTH	Pursuant to supplier rate	Pursuant to supplier rate	Pursuant to supplier rate

Subject to 3(a)(ii) of Appendix B, if the actual PUE exceeds the Reference PUE, any excess power cost associated with that shall be borne by the Provider. The Provider shall consider Reference PUE levels provided in this Annex and use commercial best efforts to improve such Reference PUE levels.

If the Provider is able to improve the relevant DPC's actual PUE in comparison to the Reference PUE, then the Provider shall incorporate a mechanism for an annual adjustment on the anniversary of the relevant Confirmation Letter Effective Date in all Charges for Consumption of Electricity Services to the Client to share the net beneficial outcome of such improvement in the actual PUE,

such benefit to be split equally between the Provider and the Client, pro-rated to the IT Infrastructure Integrated Management Services contracted by the Client against the whole DPC.

All of the foregoing prices are before and therefore exclusive of any Taxes (including but not limited to value added tax (Impuesto al Valor Agregado) ("**Value Added Tax**"), as regulated by Chilean Decree Law 825 of 1974 on Tax on Sales and Services (Decreto Ley 825, sobre Impuesto a las Ventas y Servicios), as amended from time to time, and any taxes that may replace Value Added Tax), but include all direct costs associated with the Services (materials, workforce, installation/configuration, administration, social, employment taxes and social security charges, amongst others) and indirect costs (rates, insurance, duties or taxes (limited to local or operational taxes, if applicable), expenses and levies, operating transportation expenses (national and international), transportation of materials, goods and persons (insurance included), containers, accommodation, transport by air and by road, trips, allowances, equipment, tools, consumables, amongst others), as well as any other supply that may have an impact; no additional amounts, under any title, may be charged, except for taxes levied on the Client as the purchaser of the Services which shall, for the avoidance of doubt, be for the account of the Client.

For all the Services for which prices are not included in this section –or for which no mechanism or condition has been established for their calculation– that need to be determined whilst this Local Service Agreement is being performed, unless a separate agreement is reached between the Provider and Client:

(i) For Services requested by the Client that shall be mandatorily provided by the Provider, they will be calculated according to any justified direct costs of the service plus a commercial margin of 19%; and

(ii) In all other cases, the requested Service will be subject to a commercial offer to be accepted by the Client.

3. MINIMUM SERVICE PURCHASE COMMITMENTS

- The Client undertakes to contract the IT Infrastructure Integrated Management Services, for a minimum annual amount, each year this Local Service Agreement is effective as set forth below:

Minimum volume each year of contractual effectiveness											
DPC	Volume Unit	1	2	3	4	5	6	7	8	9	10
Paine	kW	499	499	499	499	499	499	499	499	499	499
San Martín	kW	2.198	2.205	2.214	2.204	2.192	2.178	2.168	2.157	2.138	2.138
Apoquindo	kW	1.069	1.073	1.071	1.065	1.050	1.043	1.035	1.028	1.011	1.011

- Notwithstanding the purchase commitment, the Client is able to contract additional service units, subject to DPC availability.

APPENDIX E - USE AND SAFETY RULES IN THE DATA PROCESSING CENTERS

The use and safety rules applicable to DPC Paine, DPC San Martín and DPC Apoquindo are included in the document identified with the following digital fingerprint: B1FF42D207C66E72210973E38A1CDAD3AD1D94D286935A20C3F2F8DCC2F093AB (as generated using the SHA-256 algorithm).

The Parties acknowledge and agree that the use and safety rules and instructions in this Annex regarding DPC San Martín and DPC Apoquindo will be updated by mutual agreement of the Parties from time to time during the term of the applicable TSA in order to adapt them to the specific circumstances of DPC San Martín and DPC Apoquindo. For such purposes, both Parties agree to negotiate in good faith such update if so requested by any of them, acting reasonably, during the term of the applicable TSA.

APPENDIX F - GOVERNANCE MODEL

In order to be able to offer to the Client the services included in this Local Service Agreement, the Provider and the Client have established a series of mechanisms to manage relations between the Parties with the purpose of providing the services smoothly and in accordance with the commitments set forth in this Local Service Agreement.

The relationship model described in this Appendix F may be modified during the provision of the Service, if jointly agreed by the Parties. This Appendix F is intended to work in line with the governance provisions in the Framework Agreement.

In order to achieve the objectives and supervise this Local Service Agreement, the following committees have been created (each a "**Committee**"):

i. **MANAGEMENT COMMITTEE,** which ensures adequate compliance with this Local Service Agreement and establishes strategic guidelines and priorities within the contractual framework. This Committee shall consist of at least two (2) executives of each Party and shall hold meetings EVERY SIX MONTHS, or at such other time as agreed between the Parties.

ii. **OPERATIVE MONITORING COMMITTEE (*Comité de Seguimiento Operativo*) (CSO),** which ensures the compliance with service levels, shall follow up on the quality plan and guarantee that services are available in technical-operative terms; it shall coordinate the necessary actions in exceptional cases. This Committee shall consist of at least two (2) representatives of each Party appointed by the Management Committee and shall hold meetings EACH MONTH, or at such other time as agreed between the Parties.

The Parties, as soon as possible and, in any case, within 15 Business Days following the entry into force of this Local Service Agreement, will designate the members of each Committee, or any changes required to this or any other provisions in the Framework Agreement. To that end, each Party will inform the other during that timeframe of the Committee members designated.

The Committee quorum must be at least one (1) member of each Party. If a quorum is not met, a new Committee meeting will be called within a term of five (5) Business Days, and so on, until a sufficient quorum is reached.

No votes shall be allocated to individual Committee members; decision-making shall be undertaken by discussion among Committee members in good faith. If the Committee members fail to agree on disputes or matters within the relevant time frames, such disputes or matters shall be escalated to the Monitoring Committee provided for in Clause 8 of the Framework Agreement. Any modification in participants of the Committee shall be notified in writing to the other Party, before the next Committee meeting is held.

All meetings shall be held at the place periodically agreed by the Parties. Committee members may participate in the meeting through remote means of communication, as long as they have devices allowing a simultaneous connection with all Committee members.

Likewise, the members of the Monitoring Committee provided for in Clause 8 of the Framework Agreement may also attend the meetings of the Management Committee and the Operative Monitoring Committee as observers.

The Parties shall implement the necessary means, beginning with the first meeting of each Committee, to record what is discussed at each meeting, thus reflecting all decisions adopted by the Committee. To that end, the Committee members designated by the Provider shall draw up minutes of each meeting to be sent to the attendants during the following three (3) Business Days

after the Committee meeting is held. If all or part of the minutes is not dismissed after ten (10) Business Days have expired following receipt, it shall be deemed as accepted. All decisions adopted by the Committees shall be registered in such minutes. The Provider shall be responsible and shall act as the sole interlocutor before the different subcontractors acting in the DPCs.

At the commencement of the provision of the Service, the Provider and the Client shall jointly define which mechanisms to use in order to cover the Parties' relationship model. When defining these mechanisms, at least the following must be covered:

- Interlocution structure (levels and roles).
- Communication and action flows:
    - Guidelines and policies.
    - Circulars.
    - Approvals.
    - Notifications.
    - Escalating.
    - Access Management.
- Service Command Panel, providing information on the following:
    - Service Quality.
    - New requests.
    - Economic follow-up.
    - Service improvements.
    - Compliance with this Local Service Agreement and SLAs.
    - Infrastructure capacity.

All of the above shall be contemplated in the Service Command Panel report defined in each DPC's service management model. This information must be sent on a monthly basis during the first eight (8) Business Days of the month.

In order to ensure a satisfactory relationship, adequate information is necessary; for that reason, a series of reports shall be initially established (so long as the relevant data for such reports is available as at the relevant Confirmation Letter Effective Date to the Provider), endorsed by the Management Committee, based on the following information:

- Global situation of the DPC service
- Capacity and consumption.
- SLA compliance.
- Operative panel of service indicators.
- Capacity and consumption reports.
- Modifications made.
- Incidents and problems.
- Service requests made.

APPENDIX G - PROCEDURES

The Parties agree that the following procedures drafted in the Spanish language, which are in the possession of both Parties and are identified with the following digital fingerprint (hash 353D2BDA280F1CDF74FED56B6C62D5F672C1D6E5F47FE4F195CD2E0A978067FE, as generated using SHA-256 algorithm) will apply for the provision of the Services:

- Modelo de Relacionamiento.
- Gestión de Cambios.
- Gestión y Control de Accesos.
- Gestión de Incidentes.
- Peticiones de Infraestructura Técnica.
- Acreditación de Proveedores.
- Gestión de Auditorías.

The Parties acknowledge and agree that the procedures will be updated by mutual agreement of the Parties from time to time during the term of the applicable TSA in order to adapt them to the specific circumstances of DPC San Martín and DPC Apoquindo, as well as to adequately reflect all the requirements derived from the Client's need to comply with its regulatory obligations to SUBTEL (Subsecretaría de Telecomunicaciones) and any other underlying or additional requirement associated with those obligations, in each case, within the scope of the procedures under which the Client has operated DPC San Martín and DPC Apoquindo until the Confirmation Letter Effective Date in relation to DPC San Martín and DPC Apoquindo. Any such amendment of the procedures will be based on the procedures referred to above and the following principles:

(a) The Services linked to physical spaces in DPC Apoquindo and DPC San Martín which are occupied by the Client and dedicated to End Clients (as of the Confirmation Letter Effective Date, B2B services) will be subject to the same procedures as those defined for DPC Paine.

(b) the performance of these specific procedures and their requirements shall be included in the scope of the TSA for the DPC San Martín and DPC Apoquindo, in particular under the categories "Data Centre Services" and "Operation and Support Services", and the know-how related to them shall be transferred from the Client to the Provider within the process by which the Provider shall reach operational independency according to the provisions of such agreement. Should it be evidenced that (i) certain activities included in the specific procedures are not being performed by the Client (or its contractors) under the TSA, or (ii) carrying out certain activities included in the specific procedures leads to an incremental cost for the Provider above the one declared by the Client, such activities shall be excluded from the specific procedures and the Parties shall negotiate in good faith with a view to agreeing on the terms and conditions for their inclusion within said specific procedures;

(c) the specific procedures shall not breach data protection regulations or any other applicable rules or Law. The information to be received and furnished (as applicable) by the Parties is ascribed to the service provided by the Provider to the Client; and

(d) the specific procedures shall not be contrary to or inconsistent with the provisions of the Local Service Agreement.

The Parties acknowledge that they may agree amendments to improve the agreed procedures, to the extent that these amendments preserve the substance of the provisions set out in this Local Service Agreement and allow for better operational delivery of Services from the Provider to the Client. For these purposes, either Party may propose the amendment to the other Party; the adoption of the amendment shall be subject to the approval of the Operating Monitoring Committee, which shall be reflected in the corresponding minutes.

Until the Parties come to an agreement about said update, the Parties agree that, with respect to DPC San Martín and DPC Apoquindo, the Provider shall not be obliged to apply those procedures that DPC San Martín and DPC Apoquindo cannot comply on the relevant Confirmation Letter Effective Date (or that have not been implemented before the relevant Confirmation Letter Effective Date).